

NO. 141-370402-25

WEINSTEIN MANAGEMENT CO.,	§	IN THE DISTRICT COURT OF
INC. AND WMCI DALLAS X, LLC,	§	
Plaintiffs and Counter-Defendants,	§	
	§	
v.	§	TARRANT COUNTY, TEXAS
	§	
KATHRYN COPELAND,	§	
Defendant and Counter-Plaintiff.	§	141ST JUDICIAL DISTRICT

**Defendant/Counter-Plaintiff's Motion for Statutorily Required Accommodations Under
the Texas Fair Housing Act and Request for Clarification of Rights**

TO THE HONORABLE JUDGE OF SAID COURT:

COMES NOW Defendant/Counter-Plaintiff Kathryn Copeland ("Defendant") and respectfully moves for clarification of statutory obligations under the Texas Fair Housing Act ("TFHA"), Tex. Prop. Code § 301.001 et seq., and for a narrow, interim order compelling Plaintiffs to participate in the mandatory interactive process regarding temporary housing accommodations during ongoing displacement.

This Motion does **not** request damages or a final ruling.

It seeks only **statutory compliance** and **clarity** pending trial in May 2026.

I. PURPOSE OF THIS MOTION

1. Defendant seeks (1) clarification of the parties' duties under the TFHA and (2) a short interim order directing Plaintiffs to engage in the interactive process required by law when a disabled tenant is displaced due to environmental hazards.
2. This will preserve the status quo, prevent additional disputes, and ensure compliance with controlling statutes without requiring the Court to adjudicate final rights.

II. STATUTORY AUTHORITY

Texas Fair Housing Act

- **Tex. Prop. Code § 301.021** – housing providers must make reasonable accommodations in rules, policies, or services when necessary to afford a person with a disability equal opportunity to use and enjoy a dwelling.
- **§ 301.171** – prohibits coercion, intimidation, retaliation, or interference with a person exercising these rights.

Persuasive federal authority

(consistent with Texas FHA because the statutes mirror each other):

- **Groome Resources Ltd. v. Parish of Jefferson**, 234 F.3d 192 (5th Cir. 2000): *Indeterminate delay = constructive denial.*
- **Chavez v. Aber**, 122 F. Supp. 3d 581 (W.D. Tex. 2015): *Stonewalling the interactive process violates the FHA.*
- **Women’s Elevated Sober Living v. City of Plano**, 86 F.4th 1108 (5th Cir. 2023): *When environmental hazards displace a disabled person, the housing provider must cover “actual costs of living” associated with accommodations.*

III. FACTUAL GROUNDS FOR RELIEF (SUPPORTED BY EXHIBITS)

3. Defendant has documented disabilities, including medically confirmed environmental sensitivities and cognitive impairments. (*Exhibit 1: March 5 Disability Disclosure; Exhibit 2: June 27 Formal FHA Request; Exhibit 3: Medical Letter.*)
4. As Defendant provided Plaintiffs with a detailed “Medical Needs Matrix” stating why certain temporary housing (e.g., rooms without kitchens or filtration) were unsafe. (*Exhibit 4.*)
5. Plaintiffs did not participate in the interactive process. Communications ceased, and litigation followed.

6. New evidence—including the September 8, 2025 Mold Remediation Protocol prepared for Plaintiffs—shows that hazardous conditions existed prior to the alleged September 11 event. (*Exhibit 5.*)
7. Defendant remains displaced and requires temporary housing that accommodates her documented medical needs.
8. Defendant has documented ADA-qualifying neurological and autonomic impairments that substantially limit major life activities, including stamina, mobility, and information processing during prolonged proceedings. These limitations are established in the court record and recognized under both federal and Texas law.
9. Timeline of Statutory Violations Beginning June 27, 2025
 - **June 27, 2025** — Defendant submitted a written FHA/ADA accommodation request with fully documented disability-related needs.
 - **June 27 – July 14, 2025** — Plaintiffs did not respond to the accommodation request, triggering constructive denial under *Groome* and *Chavez*.
 - **July–August 2025** — Plaintiffs continued to ignore medical information, failed to initiate the interactive process, and withheld environmental findings.
 - **August–October 2025** — Plaintiffs provided temporary housing but never engaged in the interactive process to ensure the housing met documented medical needs.
 - **October 26, 2025** — Plaintiffs terminated temporary housing during ongoing contamination and displacement.
 - **October 27 – present** — Plaintiffs refused all communication about accommodations and proceeded to litigate instead.
10. This timeline shows an unbroken pattern of FHA/ ADA violations from June 27 to the present, requiring the Court to order compliance and restore the last non-retaliatory housing arrangement.

IV. REQUESTED RELIEF (NARROW & STATUTORILY REQUIRED)

Defendant respectfully requests that the Court enter an interim order:

1. Compelling the Interactive Process

Requiring Plaintiffs, within **3 days**, to engage in a good-faith interactive process to identify ADA/TFHA-compliant temporary housing that meets Defendant's documented medical needs.

2. Clarifying TFHA Obligations

Clarifying that Plaintiffs must provide reasonable accommodations under Tex. Prop. Code § 301.021 pending trial.

3. Preservation of Personal Property

Prohibiting disposal, alteration, or cleaning of Defendant's property held by Plaintiffs without further Court order.

4. Court Retains Oversight

Clarifying that disputes regarding the adequacy of accommodations will be returned to the Court, if necessary.

This relief **does not adjudicate final liability or damages**. It merely ensures compliance with statutory duties during litigation.

V. PATTERN OF REFUSAL TO ENGAGE IN THE REQUIRED ADA/FHA INTERACTIVE PROCESS

Defendant has repeatedly submitted formal ADA/FHA accommodation requests to Plaintiffs since June 2025, supported by medical documentation and detailed statements of need. Plaintiffs have not engaged in the required interactive process despite explicit requests, and have

instead imposed arbitrary deadlines, denied basic information, and, at times, expressly stated that they “do not need to” discuss Defendant’s disabilities or accommodation needs. *See Exhibit 6* (Summary of Communications). Their continued refusal to participate in the interactive process violates 42 U.S.C. § 12132, 42 U.S.C. § 3604(f)(3)(B), and HUD regulation 24 C.F.R. § 100.204.

VI. NOTICE OF HEARING

Defendant respectfully sets this Motion for hearing on:

Thursday, December 4, 2025 at 10:00 AM,

or at the earliest time convenient for the Court.

Respectfully submitted,



KATHRYN COPELAND

State Bar No. 24086056

405 Crawford St. #2145

Fort Worth, Texas 76104

Tel: (817) 789-8498

Katie@CopelandLawTexas.com

Defendant and Counter-Plaintiff,

Attorney Pro Se

CERTIFICATE OF CONFERENCE

I hereby certify that on December 1, 2025, I attempted to confer with opposing counsel via email regarding the relief requested in this motion. Counsel has not yet responded. A reasonable effort was made to resolve the dispute without court intervention and the effort failed. Therefore, it is presented to the Court for determination.



KATHRYN COPELAND

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of this motion was served on December 1, 2025
via electronic service to:

Glynis L. Zavarelli
gzavarelli@wandzlaw.com

Michelle S. Sortor
msortor@wandzlaw.com


KATHRYN COPELAND

Exhibit 1:
March 5 Disability
Disclosure

Subject: Urgent: Mold Issue & Health Concerns

Date: Wednesday, March 5, 2025 at 12:52:24 PM Central Standard Time

From: Katie Copeland

To: Bowery Southside

Hello, I never realized mold was so serious. I just asked ChatGPT about the mold and my unique constellation of diseases. It told me this was urgent and suggested I write the following:

I am reaching out to report a concerning mold issue in my apartment. I have noticed mold growing in the corner of my entryway, which raises concerns that there may be mold in other areas as well. Given my medical conditions, this is an urgent issue that could severely impact my health.

I have several chronic illnesses, including [REDACTED], which make me extremely sensitive to environmental triggers like mold. Mold exposure can cause severe allergic reactions, respiratory issues, immune system dysfunction, and increased inflammation, all of which could seriously worsen my condition.

Because of these health risks, I need an inspection as soon as possible to determine the extent of the mold issue and whether remediation is necessary. If testing confirms a mold problem, I will need immediate intervention to ensure my apartment remains a safe living environment.

Please let me know how soon we can schedule an inspection and discuss next steps. I appreciate your prompt attention to this matter, as it directly affects my ability to safely remain in my home.

Separate question: do you know anyone who does dog walking in our complex or nearby? I had a medical procedure done today and it would be great if I could pay someone to walk my dogs since I am not able to move much.

Best,

Katie Copeland
817-789-8498

**Exhibit 2: June 27
Formal FHA Request
(attachments not
included here)**

WITHOUT PREJUDICE

Kathryn Copeland
405 Crawford St. #2145
Fort Worth, Texas 76104
(817) 789-8498
[REDACTED]@gmail.com

June 27, 2025

To: Bowery at Southside Management and Weinstein Properties Team

Re: Apartment #2145, The Bowery at Southside, Fort Worth, TX 76104

OPPORTUNITY FOR AMICABLE RESOLUTION

I'm writing in good faith to request your assistance with a serious health and safety hazard in my unit. Professional testing has confirmed dangerous mold levels that require immediate attention. As a tenant who has consistently paid rent on time for the past 20 months, I'm hoping we can work together to resolve this situation promptly and professionally.

As someone with documented disabilities who requires reasonable accommodations, I'm hopeful that Weinstein Properties will demonstrate its commitment to ADA compliance and fair housing principles through a prompt, cooperative response to this health emergency.

CONFIRMED HAZARDOUS CONDITION

On June 22, 2025, BioTex (License #MAC1813) issued a professional mold assessment that revealed:

- **Dangerous Mold Types:** Laboratory testing confirmed elevated levels of:
 - Aspergillus/Penicillium
 - Chaetomium
 - Stachybotrys/Memnoniella (black mold)
- **Professional Remediation Required:** The assessment states "BioTex Inspections recommends that a licensed Mold Remediation Contractor be retained for the removal of the impacted materials."
- Elevated mold levels throughout the apartment, including bedroom areas

- The report explicitly declares 405 Crawford Street, Apt. 2145, Fort Worth, TX as **"unfit for human occupancy"** until mold remediation of the residence/facility/structure (including all items/contents within) is performed in accordance with the Texas Mold Assessment and Remediation Administrative Rules."

These findings confirm what I first reported on August 29, 2024, October 7, 2024, and again on March 5, 2025. The complete assessment report is attached for your review.

Under Texas law, this constitutes a condition that "materially affects the physical health or safety of an ordinary tenant" as specified in Property Code §92.052(a)(3)(A), and even more significantly impacts my health given my documented medical vulnerabilities.

REQUEST FOR DOCUMENTATION:

Please provide all maintenance records for Apartment 2145 prior to my tenancy, including building leaks or water intrusion.

TEMPORARY HOUSING:

I am requesting immediate relocation assistance in the form of a furnished, mold-free, and medically appropriate temporary housing arrangement. This may include, but is not limited to, extended stay hotels, corporate housing, or short-term rentals (e.g., Airbnb, Furnished Finder), provided the environment supports my recovery, accommodates necessary medical care, and safely houses me, my two daughters, my service animals, and any caregivers or guests.

The temporary space must offer at minimum:

- Two separate room / sleeping areas
- Access to a full-size refrigerator and kitchen or kitchenette
- A clean, low-toxin environment that supports recovery from toxic mold exposure and related medical conditions

This request is narrowly tailored to avoid further medical harm and reduce the need for ongoing emergency treatment or inpatient care.

REMEDIES AND ACCOMMODATIONS

Please provide, **in writing within 7 days** of receipt (by **July 3, 2025**):

1. **Immediate Temporary Housing:** Alternative accommodation for three occupants and two dogs at The Nobleman Hotel across the street (two adjoining rooms with kitchenette) and pet accommodation at Doggie Diggs next door (\$85/night for two dogs sharing a crate), beginning immediately and lasting until the unit passes clearance testing. I am also open to discussing other relocation options.
2. **Licensed Mold Remediation:** Engagement of a Texas-licensed Mold Assessment Consultant to develop a protocol and oversee remediation, including proper containment, negative air pressure, and post-remediation clearance testing.
3. **Medical Expense Reimbursement:** Compensation for medical expenses reasonably related to mold exposure.
4. **Written Documentation:** Confirmation of the assigned vendor's name, license number, remediation plan, and timeline for completion.

Please note that this letter constitutes formal notice under Texas Property Code §92.056(b)(3) also being sent by certified mail, return receipt requested. The statutory timeline for response and remediation begins upon your receipt of this notice.

TIME-SENSITIVE CONSIDERATIONS

Two factors make this situation particularly urgent:

1. The Fort Worth Star Telegram reported that 800 residents were displaced by an apartment fire at The Cooper Apartments less than a mile from The Bowery on June 24, 2025. These residents are currently seeking temporary accommodations in our area, making hotel rooms increasingly scarce (article attached).
2. My next scheduled medical appointments are on July 2 and July 7, and my doctors have emphasized the importance of reducing my exposure before these evaluations to get accurate readings.

I'm concerned that without prompt action, suitable accommodations may become unavailable, and my health may deteriorate further.

LEGAL FRAMEWORK

While I hope we can resolve this matter cooperatively, I should note that this situation implicates several important legal frameworks:

Texas Property Code §92.052 and §92.056

- Requires landlords to remedy conditions materially affecting tenant health and safety
- Establishes a rebuttable presumption that seven days is a reasonable repair time
- Provides remedies including lease termination, repair and deduct, and judicial remedies
- This notice satisfies the formal notice requirements under these provisions

Americans with Disabilities Act (ADA) & Fair Housing Act

- My documented medical conditions qualify as disabilities requiring reasonable accommodation
- The request for temporary relocation constitutes a reasonable accommodation for my disabilities
- Housing providers must make reasonable accommodations when necessary to afford persons with disabilities equal opportunity to use and enjoy a dwelling
- Failure to provide reasonable accommodations may constitute disability discrimination

Texas Deceptive Trade Practices Act (DTPA)

- Prohibits misrepresentations about the characteristics or qualities of goods or services
- Protects consumers against failure to disclose information about goods or services
- Provides for economic damages, mental anguish damages, and potentially treble damages
- Continuing to represent the apartment as habitable despite known mold issues may constitute a DTPA violation
- This letter constitutes notice under §17.505 of the Texas Deceptive Trade Practices Act. Your actions violate §17.46(b)(5), §17.46(b)(7), and §17.50(a)(2) of the DTPA by:
 - Representing that goods or services have characteristics or benefits they do not have

- Representing that goods or services are of a particular standard or quality when they are of another
 - Breaching the implied warranty of habitability
 - Failing to disclose known material defects and health hazards, including the presence of mold and prior water intrusion, which you had a duty to disclose.
- This letter provides you with the opportunity to settle this matter within 60 days before I pursue all available legal remedies, including treble damages and attorney's fees under the DTPA.

If these conditions are not remedied within the specified timeframe, I will exercise my statutory rights, which may include terminating the lease, deduct-and-repair, and pursuing damages, court costs, and attorney's fees under §§ 92.056, 92.0561, and 92.0563, as well as potential claims under the ADA, Fair Housing Act, and DTPA.

STATUTORY NOTICES

This letter serves as formal notice under multiple legal frameworks:

1. Texas Property Code §92.056(b)(3): This written notice is being sent by certified mail, return receipt requested regarding conditions that materially affect my physical health and safety. As documented in the attached payment history, I am not delinquent in payment of rent at the time of this notice.
2. Texas Deceptive Trade Practices Act §17.505: This constitutes written notice under the DTPA for violations of §17.46(b)(5), §17.46(b)(7), and §17.50(a)(2) through:
 - a. Representing the apartment as habitable when it is professionally deemed "unfit for human occupancy"
 - b. Concealing pre-existing water damage by painting over it without proper remediation
 - c. Breaching the implied warranty of habitability from the beginning of the lease
 - d. Failing to disclose information about the property's condition that was known when I signed the lease

3. Americans with Disabilities Act and Fair Housing Act: This serves as a request for reasonable accommodation based on my documented disabilities that make me particularly vulnerable to mold exposure.

This letter provides you with the opportunity to resolve this matter within 60 days before I pursue all available legal remedies, including treble damages and attorney's fees under the DTPA.

CONCLUSION

I have been a responsible tenant throughout my tenancy, with consistent on-time rent payments and proper maintenance notifications. I'm simply requesting the accommodations necessary for my health and safety as provided by law.

If Weinstein Properties wishes to resolve this matter amicably, I am open to a good faith discussion. I appreciate your attention to this matter and look forward to your prompt response. I'm available to discuss this in person or by phone at your convenience.

Sincerely,

Katie Copeland
Apt. #2145, The Bowery at Southside
Fort Worth, TX 76104
(817) 789-8498
k.m.copeland@tcu.edu

Attachments:

1. BioTex Mold Assessment Report (6/22/25)
2. Moisture-meter readings & photos (6/10/25)
3. Witness statement – David Quiram (6/10/25)
4. Prior notice email (3/5/25)
5. Fort Worth Star Telegram article re: apartment fire displacement (6/24/25)
6. Nobleman Hotel and AirBnB accommodation options and pricing

NON-WAIVER STATEMENT:

This letter relates specifically to The Bowery at Southside and Weinstein Property and is without prejudice to separate claims against other parties responsible for mold-related illnesses.

Exhibit 3

MEDICAL RELEASE/PHYSICIAN'S STATEMENT



SECTION I - TO BE COMPLETED BY STAFF

Name of Patient Kathryn Marie Copeland	Date of Birth 06/28/	Social Security No. [REDACTED]
Case Name(caregiver) Kathryn Marie Copeland	Case No. [REDACTED]	Patient's Usual Job [REDACTED]
HHSC Office Address/Mail Code/FAX No. PO Box 149027 Austin TX 78714-9027 Fax: 1-877-447-2839		

SECTION II - TO BE COMPLETED BY PHYSICIAN

The patient named above has applied for benefits with our agency. Federal and state regulations require that persons receiving benefits work or participate in activities to prepare them for work unless they are physically or mentally incapable of working. This patient claims that disability. Please complete the appropriate parts. After you complete the form, you may give it to the client or mail it to HHSC at the address in Section I .

PART A - DISABILITY:

To what extent is the individual able to work or participate in activities to prepare for work? Please check **one** of the following boxes:

- 1) The individual is able to work, or participate in activities to prepare for work, **without restrictions:**
 - a) ☐ Full time (40 hours/week)
 - b) ☐ Part time at _____ hours/week
- 2) The individual is able to work, or participate in activities to prepare for work, **with restrictions: (Please complete Part B and C)**
 - a) ☐ Full time (40 hours/week)
 - b) ☐ Part time at _____ hours/week
- 3) The individual is unable to work, or participate in activities to prepare for work, at all: **(Please complete Part C)**
 - a) ☐ The disability is permanent.
 - b) ☒ The disability is not permanent and is expected to last more than 6 months.
 - c) ☐ The disability is not permanent and is expected to last 6 months or less.

PART B - TANF HARDSHIP

What can this individual do now? Check the appropriate boxes that are applicable during a workday:

Maximum hours per workday:	2	4	6	8	Other
Sitting	☐	☐	☐	☐	☐
Standing	☐	☐	☐	☐	☐
Walking	☐	☐	☐	☐	☐
Climbing stairs/ladders	☐	☐	☐	☐	☐
Kneeling/Squatting	☐	☐	☐	☐	☐
Bending/Stooping	☐	☐	☐	☐	☐
Pushing/Pulling	☐	☐	☐	☐	☐
Keyboarding	☐	☐	☐	☐	☐
Lifting/Carrying	☐	☐	☐	☐	☐
Other (please describe)					





The individual may not lift/carry objects more than ____ lbs. for more than ____ hours per day.
Individuals with employment limitations may still be assigned to complete community work in an office environment with little physical strain or demand (answering phones, filing while seated, etc.) Others may be assigned to complete employment-related activities in a classroom setting. In your opinion, can this individual participate in activities of this nature?

☐ Yes ☒ No

Any other remarks, recommendations or restrictions? _____

PART C - DIAGNOSIS

Primary disabling diagnosis
Mild cognitive impairment / Abnormal MRI of Head

Secondary disabling diagnosis
Multiple chronic conditions listed below.

Comments: Hypogammaglobulinemia, [REDACTED]
[REDACTED] toxic mold exposure complications.

Name of Physician (please type or print)
Victor Kayster, MD

Physicians License No.
1750804746


Signature-Physician

10/21/25
Date

Office Address (Street or P.O. Box, City, State, ZIP)

600 S. Main Street, Fort Worth, TX 76104

Telephone No. (Include Area Code)

817-882-2440



AUTHORIZATION TO RELEASE MEDICAL INFORMATION
AUTORIZACIÓN PARA DIVULGAR INFORMACIÓN MÉDICA



Case Number / Num. de Caso:

SECTION III - TO BE COMPLETED BY CLIENT/SECCIÓN III, EL CLIENTE DEBE LLENAR ESTA SECCIÓN

Patient's Name/Nombre del paciente: Kathryn Marie Copeland

HHSC is requesting verification of the medical condition that prevents you from participating in the employment services program. When you sign this authorization, you are giving HHSC permission to contact your doctors, medical facilities, or other health care providers to request copies of your health information as indicated below. You do not have to sign this form to be eligible for TANF, Food Stamps, or Medicaid. However, you must sign this form if you want to be eligible for an exemption from the employment services program.

HHSC necesita verificación sobre el padecimiento médico que le impide participar en el programa de servicios de empleo. Cuando firme esta autorización, le dará permiso a la HHSC para comunicarse con su doctor, centros médicos u otros proveedores de atención médica para pedir copias de su información médica como se indica más adelante. No necesita firmar esta forma para llenar los requisitos para TANF, estampillas para comida o Medicaid. Sin embargo, es necesario que firme esta forma si desea llenar los requisitos para una exención del programa de servicios de empleo.

I authorize/ Yo autorizo a _____

Doctor, Medical Facilities, or other Health Care Providers
Doctor, centro médico u otro proveedor de atención médica

To complete Form H1836-A, Medical Release/Physician's Statement, and release the information to HHSC and the Texas Workforce Commission for purposes of verifying the medical condition that prevents me from participating fully in the employment services program.

Para llenar la Forma H1836-A, *Medical Release/Physician's Statement*, y poner la información a disposición de la HHSC y de la Comisión Laboral de Texas para verificar el padecimiento médico que me impide participar completamente en el programa de servicios de empleo.

This authorization expires on / Esta autorización se vence el: October 31, 2026

Kathryn Copeland

10/19/2025

Client or Personal Representative's Signature /
Firma del Cliente o del Representante personal

Date/
Fecha

If you are signing for the client, please describe your authority to act for the client:

Si usted va a firmar por el cliente, por favor, describa la autoridad que tiene para actuar en nombre de él:

Witness /Testigo

Date/Fecha

Witness /Testigo

Date/Fecha

Notice to Client

HHSC, as receiver of this information, will protect your personal health information in accordance with federal and state privacy regulations. If you authorize release of your health information to other parties it may no longer be protected by privacy regulations. You can withdraw permission you have given your doctor or health care provider to use or disclose health information that identifies you, unless they have already taken action based on your permission. You must withdraw your permission in writing.

Notice to Client

El HHSC, como destinataria de esta información, protegerá su información médica personal conforme a las regulaciones estatales y federales del derecho a la vida privada. Si autoriza la divulgación de su información médica a terceros, es posible que ya no tenga la protección de las regulaciones del derecho a la vida privada. Usted puede retirar el permiso que le haya dado a su doctor o al proveedor de atención médica para usar o divulgar información médica que lo identifique a usted, a menos que éste ya haya actuado de acuerdo con su permiso. Tiene que retirar su permiso por escrito.



Patient Name: Kathryn Copeland

DOB: June 28, [REDACTED]

Date: September 11, 2025

Provider Name & Credentials: Kim Tran, M.D.

Facility: UT Southwestern Medical Center
600 S Main St 3rd Floor, Suite 500
Fort Worth, TX 76104

Dire Needs Letter

To Whom It May Concern,

I am the primary care physician for Kathryn Copeland. She has been under my care for multiple chronic medical conditions that significantly impair her daily functioning, including [REDACTED]

[REDACTED] immune system abnormalities (hypergammaglobulinemia), [REDACTED] and complications from toxic mold exposure.

These conditions collectively cause [REDACTED]

[REDACTED] Even minimal exertion can trigger symptom flares requiring extended rest.

Since early 2025, Ms. Copeland's health has worsened. She was displaced from her home in June/July 2025 due to toxic mold and has been forced to live in unstable hotel housing. This disruption prevents her from accessing prescribed home health services, therapy, and ongoing medical care, further compromising her health.

[REDACTED]

[REDACTED]

[REDACTED]

Sincerely,



Kim Tran, M.D
UT Southwestern Medical Center

Patient:	Kathryn Copeland	
DOB:	6/28/2000	
Physician completing this form:	Dr. Kim Tran	

Please complete the following questions regarding this patient's impairments and attach all supporting treatment notes, radiologist reports, laboratory and test results.

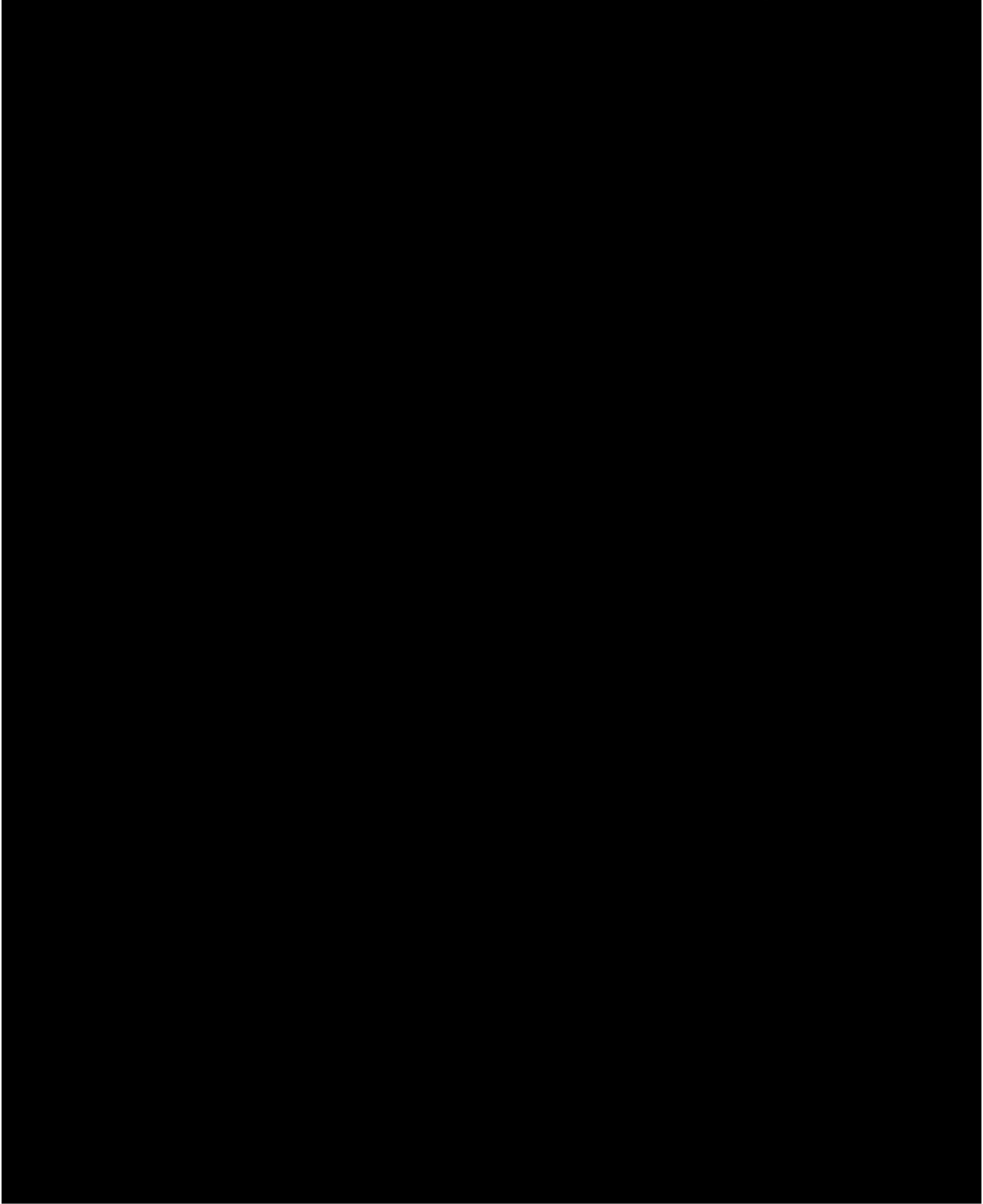
Symptoms & Diagnosis

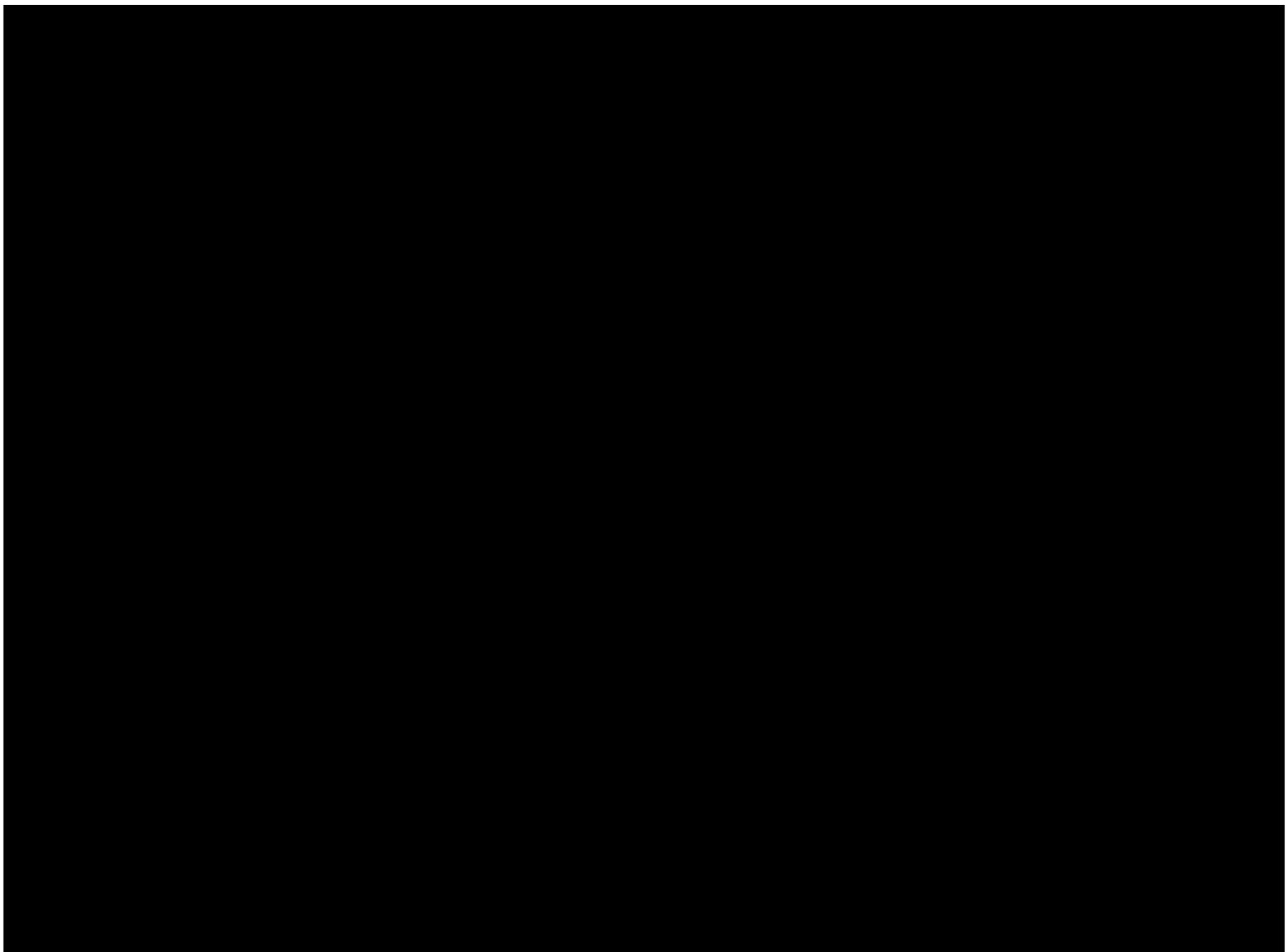
What diagnoses has this patient received? Hypergammaglobulinemia (immune dysfunction),
[REDACTED] Toxic mold
exposure with visual impairment & cognitive decline. [REDACTED]

Does the patient have chronic pain/paresthesia? ☒ Yes ☐ No

Testing & Treatments







Chronic, worsening despite treatment; prognosis poor without stable housing and consistent medical care.

Completed by:

Kim Tran, M.D.

Physician's Printed Name

600 S. Main St., Suite 500

Address
3rd Floor

Fort Worth, Texas 76104



Physician's Signature

9-11-28

Date

UTSouthwestern
Medical Center

University Hospital Physical Medicine & Rehabilitation Clinic
Clinic Phone: 214-645-2080

September 8, 2025

Patient Name: Kathryn Copeland
DOB: June 28, [REDACTED]

RE: Medical Statement [REDACTED]

To Whom It May Concern,

I am writing this statement in support of Kathryn Copeland's [REDACTED]
[REDACTED] She has been under my care at UTSouthwestern since
October 8, 2024, for [REDACTED]
[REDACTED] These are severe chronic illnesses
that significantly impair her daily functioning [REDACTED]

In addition to these primary conditions, review of her medical records shows she is also being treated
for the following chronic and compounding illnesses: [REDACTED]

[REDACTED] binocular dysfunction linked to toxic mold
exposure [REDACTED] and immune abnormalities including
hypogammaglobulinemia.

Her July 2025 evaluation by Dr. Alfred Johnson documented toxic mold exposure with extremely
elevated levels of Aspergillus, Chaetomium, and Stachybotrys. [REDACTED]
[REDACTED]

Since my prior March 2025 statement, Ms. Copeland's health has further deteriorated. She was
displaced in June/July 2025 due to mold contamination and has been forced to live in a hotel. This

[REDACTED]

[REDACTED]

In my professional opinion, Ms. Copeland [REDACTED] is in urgent need of financial and medical support to stabilize her living conditions and prevent irreversible decline.

Sincerely,

 9/10/25

Isabel Huang, MD
UT Southwestern Medical Center

Exhibit 4

**September 18, 2025
at 4:53 PM**

Email

From: Kathryn Copeland

**To: Kathryn Copeland, John Douglas,
Glynis Zavarelli, Amye Brochstein,
Lile Benaicha, Pamela Quinn**

**Re: Booked Holiday Inn (non-ADA room).
Refusing to engage in interactive dialogue -
“take it or stay in toxic mold” even after I
informed them they were violating FHA, ADA,
and supported it with case law**

Subject: Re: Urgent ADA/FHA Accommodation – Omni Fort Worth
Date: Thursday, September 18, 2025 at 4:53:43 PM Central Daylight Time
From: Copeland, Katie
To: Glynis Zavarelli, Lile Benaicha, 'Brochstein, Amye', Michelle Sortor, Pamela Quinn
CC: John Douglas
Attachments: image.png, image.png

Each time Weinstein insists on placing me at a hotel that I have already demonstrated is medically ineffective, that is not an “offer” — it is a separate denial of my requested reasonable accommodation under the FHA and ADA. You have been repeatedly notified (in writing and with exhibits) that I am medically fragile, that I lack funds and transportation to move my medical equipment, and that generic hotel placements are harmful. Those repeated refusals are willful, cause ongoing medical harm, and each constitutes its own violation.

TDLR has outlined the factors its prosecutors weigh in sanctioning violations: seriousness, willfulness, good-faith mitigation, history of past violations, deterrence, and justice considerations. Each factor weighs heavily against Weinstein here: you knowingly forced a disabled tenant into a condemned unit, acted in bad faith by repeating ineffective placements, and ignored clear medical documentation. This is not an isolated mistake — it is a pattern.

Finally, as these violations become more egregious, I ask you to clarify: who is actually making these decisions? Is it Weinstein Properties — a housing provider obligated to comply with the FHA? Or is it Ms. Zavarelli as counsel — who has independent duties under federal law and the Texas Rules of Professional Conduct? Either way, accountability will attach directly to the decision-maker.

Accountability and scope of duties

- Housing provider liability: Weinstein, as the housing provider, has the FHA duty to provide an effective, individualized accommodation (42 U.S.C. § 3604(f)(3)(B)) and to avoid interference (§ 3617). Counsel’s role does not shield unlawful decisions.
- Individual participation liability: Individuals who personally participate in discriminatory decisions can be liable under the FHA, including for aiding/abetting and interference (see DOJ guidance; cf. *Hovsons v. Township of Brick*).
- Counsel’s professional obligations: I understand counsel’s role, but directing or implementing decisions that deny effective accommodation or condition it on unrelated terms risks both FHA exposure and professional-conduct concerns (e.g., Texas Rules 4.04, 8.04).

I have repeatedly compromised and presented concrete proposals for safe, medically effective accommodations. Your responses have been limited to placements already proven ineffective. That is not compliance; it is ongoing discrimination. Compliance requires immediate effective accommodation, not further deflection. Another rejection of my carefully created requests is a knowing and intentional act to subject me to more time in a poisonous environment. At the very least, that would be considered duress in our “interactive process.” So I suggest you approve my request - even if just for a few days - so that we can have a better discussion.

Warmly,
Katie Copeland
817-789-8498

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Date: Thursday, September 18, 2025 at 1:16 PM
To: Glynis Zavarelli <gzarelli@wandzlaw.com>, Lile Benaicha <lbenacha@weinsteinproperties.com>, 'Brochstein, Amye' <amyebrochstein@phly.com>, Michelle Sortor <msortor@wandzlaw.com>, Pamela Quinn <pquinn@weinsteinproperties.com>
Cc: John Douglas <john@jadouglaslaw.com>
Subject: Urgent ADA/FHA Accommodation – Omni Fort Worth

Dear Weinstein Properties and Counsel,

This is an urgent ADA/FHA accommodation notice. I recognize it may be difficult for others to fully understand the daily impact of my disabilities. I invite you to resolve this collaboratively because **what I am requesting is not optional—it is a statutory requirement.** I have attached a chart to help you understand my specific needs. In case you did not know, **my access to prescribed home therapies and meal delivery services was cut off due to displacement, thus a per diem allowance and medically appropriate lodging are necessary accommodations.** These supports are not luxuries; they are disability-related medical needs. A stable per diem ensures continuity of nutrition, hygiene, and therapeutic care until I am placed in ADA-compliant housing where services can resume.

I am willing to discuss reasonable compromises, but under the Fair Housing Act and Fort Worth Code §17-86, I am entitled to:

- **Safe, ADA-compliant lodging of my choosing, not subject to arbitrary night-to-night extensions.**
- **A per diem or equivalent allowance to replace the loss of in-home therapies, nursing, and meal delivery caused by displacement.**
- Assurance that retaliation will cease and that my housing stability will not be undermined for asserting these rights.

Enforcement & Regulatory Posture (for planning):

- **TDLR:** Investigator Ida Parmer (Investigator IV, Enforcement Division) confirmed this case was forwarded to the prosecution team on August 30; I am coordinating with their office.
- **City of Fort Worth:** I remain in active contact with multiple departments, including Code Compliance, Mayor's Committee on Persons with Disabilities, and the Human Relations Commission. While Code Enforcement has paused action pending TDLR's prosecution, they retain authority to declare the building uninhabitable to protect tenants.
- **Licensure prerequisites:** For ≥25 contiguous sq ft, TDLR notification is due ≥5 calendar days before remediation; protocol/work plan must be provided ≥1 day before any start. **Please provide the notification number, start/stop dates, and current plan in advance.** Ms. Zavarelli recently stated work would begin Monday, 9/22/25, but Investigator Parmer confirmed she has not received anything from The Bowery—meaning work cannot lawfully begin.

Accommodation Needed Today:

- **Hotel:** Omni Fort Worth (or functionally equivalent)
- **Check-in:** Today
- **Duration:** 3 weeks guaranteed, with option to extend through Oct 31, 2025
- **Rooming:** King suite now; transition to two adjoining rooms if my daughters return to my care
- **Supports:** Meal credits for medically appropriate diet; laundry access; portable HEPA

Medical Treatment Access:

Because of your recent refusal to provide effective accommodations, I was re-exposed to toxic mold for a week, worsening my condition. Immediate access to my treating physician, Dr. Johnson (Richardson), is also required. Approving transportation and treatment costs now prevents greater medical and liability exposure later. Four treating physicians have documented that mold exposure and displacement have significantly worsened my health.

Per Diem / Reimbursements:

- **Option A (actuals + prospective):** Reimburse past out-of-pocket food/transport (receipts / statements available) within 5 days. Going forward: \$80/day meals (federal M&IE) + \$30/day local transportation.
- **Option B (continuous per diem):** \$80/day meals and \$30/day local transportation from 6/27/25 through present and continuing until ADA-compliant permanent housing is secured.

Note: Laundry is separate from M&IE and will be reimbursed accordingly.

Deadline:

Please confirm the Omni booking and folio coverage, medical transport to Dr. Johnson, and your selection of Option A or B by **3:00 p.m. CT today, September 17, 2025**. *Identify the decision-maker with full authority*. Absent timely confirmation, I will treat further delay as ongoing discrimination and proceed with HUD intake via the City of Fort Worth and seek emergency relief.

Needs vs. Options

Needs vs. Options matrix (✓ met · Δ partial · ✗ not met)

Legend: ✓ Met · Δ Partial · ✗ Not met

Medical/Functional Need	Holiday Inn Express	Nobleman	Bowie House	Hotel Drover	Crescent	Omni	Permanent Relocation
Bathtub / hot tub (pain, POTS)	✗	✗	Δ (hot tub across hall)	✓	✓	✓	✓
Therapy space (PT/OT/ST + caregivers)	✗	✗	✗	Δ (suite possible or 2 rooms)	✓ Suite or 2 rooms available	✓ Suite or 2 rooms available	✓
Kitchen for anti-inflammatory diet	✗	Δ (limited)	✗	Δ (unknown)	Δ (unknown)	Δ No, but includes breakfast every day (more options than Holiday Inn)	✓
Washer/dryer for hygiene	✗	✗	✗	Δ (No but hotel can do laundry for fee)	Δ (No but hotel can do laundry for fee)	Δ (No but hotel can do laundry for fee)	✓
Clean air / filtration (MCAS)	✗	✗	Δ	✓ (filters/PURE)	Δ (unknown)	✓ More rigorous air maintenance + Portable air purification units	✓
ESA yard/patio (ground access)	✗	✗	✗	✗	✗	✗	✓
Stability (30+ days, not week-to-week)	✗	✗	Δ	✓ (negotiated rate + tax-exempt)	Δ (unknown)	✓ At least 3 weeks - could likely negotiate	✓
Transportation provided / accessible location	✗	✗	✗	Δ (central access)	Δ (nearby restaurants and 7-11)	Δ (nearby restaurants, free breakfast)	✓

Item	Exact ask	Why (medical/legal)	Approve
Hotel	Omni Fort Worth, 21 nights starting tonight; King suite → two adjoining rooms if needed; folio direct-billed	Hydrotherapy, clean air, stability; FHA/ADA effectiveness	☐ Approved
Meals	\$80/day per diem or equivalent meal credits adequate for anti-inflammatory diet	██████████ nutrition; FHA effectiveness	☐ Approved
Local transport	\$30/day stipend while displaced	Access to care/food; not included in M&IE	☐ Approved
Medical transport	Fund round-trip travel to Dr. Johnson (Richardson) for scheduled and follow-ups	Treating physician access post re-exposure	☐ Approved
Laundry	Hotel laundry covered or \$15/day stipend	██████████ triggers during multi-week stay	☐ Approved
HBOT	Authorize hyperbaric oxygen treatments, supplements, testing, etc. per Dr. Johnson's plan	Mitigate injury from re-exposure; prevent irreversible decline, significant cost savings	☐ Approved
Past expenses	Option A: reimburse actuals for food/transport since displacement; or Option B: per diem retro at \$80 + \$30	Stabilize nutrition/transport continuity; fair, simple administration	☐ A ☐ B

I believe these are your only options:

Path	Up-front cost (21 nights)	Medical impact	Legal risk	Total exposure
Approve Omni + supports	Hotel + M&IE + transport + laundry + HBOT	Stabilizes; prevents irreversible decline	Low (meets FHA/ADA duties)	Predictable and limited
Place in HIE-type hotel	Lower room rate; no supports	Harm escalates; ER/relapse risk	High (ineffective accommodation + §3617)	High and compounding
Delay/deny	Near zero now	Worsening injury; specialty care required	Very high (HUD/DOJ, injunction, damages)	Maximized

Sincerely,

Kathryn (Katie) Copeland

Phone: 817-789-8498 | Email: k.m.copeland@tcu.edu

Legal Citations:

42 U.S.C. § 3604(f)(2) – Discrimination in terms, conditions, or privileges of rental housing

42 U.S.C. § 3604(f)(3)(B) – Failure to make reasonable accommodations when necessary

42 U.S.C. § 3617 – Interference, coercion, or intimidation in exercising rights

Fort Worth Municipal Code §17-86 (Ordinance 11075)

Why I Am Sending This Detail

As a courtesy, I have spelled out not only what accommodations I require but also **why each request is medically and legally necessary**. I am not obligated to provide this level of explanation under the ADA or FHA, but I have done so to streamline the process and make compliance easier for you. The attached chart further summarizes the needs → reasons → legal obligations, so there can be no confusion about what is required. I encourage you to engage counsel familiar with FHA and ADA laws because this ongoing conflict is causing much more harm to my health.

Exhibit 5

Subject: Re: Follow-Up on September 8 Mold Assessment Report
Date: Thursday, October 23, 2025 at 12:05:13 PM Central Daylight Time
From: Dayna Boor
To: Katie Copeland
Attachments: Weinstein-090425_Mold_Remediation_Protocol.pdf, Weinstein-090425_Reinspection_Report.pdf, Weinstein-090425_Air_Samples_Full_Lab_Report.pdf, Weinstein-090425_Tape_Lift_Full_Lab_Report.pdf, Weinstein-090425_Entry_Surface_Swab_Sample_Full_Lab_Report.pdf

Katie,

Please see attached reports. The remediation protocol was sent on 9/8. I was not initially made aware of the area by the front door but did go back and do an inspection of that area on 10/17. My swab sample collected by the front door on 10/17 did not find any *Stachybotrys* or anything unusual. I've attached my re-inspection report of that area. I did suggest that the baseboards and drywall in that area could be removed to further inspect.

For the contents - the remediation protocol calls for the contents to be packed-out of the apartment and cleaned according to EPA guidelines. The contents needed to be moved out so that the remediation company had room to perform a full environmental cleaning on the entire apartment.

I hope this information is helpful to you.

Dayna

On Thu, Oct 23, 2025 at 12:23 AM Katie Copeland <quinnandpoppy@gmail.com> wrote:
Ms. Boor,

I hope you're doing well. I received what appears to be your September 8, 2025 Mold Assessment and Remediation Protocol for Weinstein Properties – Unit 2145, Bowery at Southside.

Could you please confirm that this is your report? If so, would you prefer to provide a cleaner version with all components, including lab results, so I can be sure I'm reading it accurately?

Do your records indicate when and to whom the report was delivered? I assume it was shortly after completion, but I want to make sure I understand the timing correctly.

Your report notes that the client requested the assessment following a water loss from the HVAC condensation drain line affecting the mechanical closet and guest bedroom. Were you provided with or made aware of any prior mold assessments or lab findings from BioTex Inspections in June 2025, particularly results showing *Stachybotrys* or other toxic mold near the front door?

Finally, does your remediation protocol specify that licensed mold remediation is

required and that contents should not be removed until clearance testing confirms safety? The area of contents cleaning is a bit foreign to me so I want to get an understanding of how my belongings are meant to be handled.

I appreciate your time and professionalism. I'm not asking for confidential opinions—just confirming a few factual details for accuracy.

Sincerely,
Katie Copeland
817-789-8498

From: Katie Copeland [REDACTED]@gmail.com>
Date: Thursday, October 2, 2025 at 9:07 PM
To: Dayna Boor <dayna@dallasmoldconsultants.com>
Subject: Re: Mold Assessment and Protocol

Yes, but I will try again.

Sincerely,
Katie Copeland
817-789-8498

From: Dayna Boor <dayna@dallasmoldconsultants.com>
Date: Thursday, October 2, 2025 at 6:03 PM
To: Katie Copeland [REDACTED]@gmail.com>
Subject: RE: Mold Assessment and Protocol

Katie,

I can only release reports to the client who hired me. In this case, the property management company. Have you asked them for it?

Dayna

Sent from my T-Mobile 5G Device

----- Original message -----

From: Katie Copeland [REDACTED]@gmail.com>
Date: 10/2/25 12:58 PM (GMT-06:00)
To: office@dallasmoldconsultants.com
Subject: Mold Assessment and Protocol

Hello,

I am the tenant at at 220 E. Broadway #2145, Fort Worth, TX 76104.
May I please have a copy of the mold assessment report, lab results, and protocol completed in early September? I am especially curious about the findings of the lab tests on my belongings.

Sincerely,
Katie Copeland
817-789-8498

--
Dayna Boor
Dallas Mold Consultants
www.dallasmoldconsultants.com
972-945-MOLD office
214-606-1330 cell

PROJECT INFORMATION
Weinstein - 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Air Exam Chain of Custody

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

Company name		Dallas Mold Consultants		State		TX	ZIP	75206
Address		8080 N. Central Expy Ste 1700		City		Dallas		
Project name		Weinstein - 090425		Project address		220 E Broadway Ave # 2145, Ft Worth TX		
Project (if optional)				Turnaround time		76104		
Sample Date		09/04/2025		3HR		6HR	24HR	48HR
				0		0	0	0
				CC:		CC:		

Test Codes				MOLD				ASBESTOS				
Air Samples				Surface Samples				7 FLM				
Sample # or ID	Sample Name, Location or Description	Temp	R.H. %	Test code	Time on (samples only)	Time off (samples only)	Total Vol (samples only)	Sample Type	No. of Containers			
1. 090425-01	Guest Bedroom - Tape Lift	76	63	3				Tape	1			
2. 090425-02	WAC Closet - Drapery Tape Lift	76	63	3				Tape	1			
3. 00010444	WAC Closet - Hallway	76	63	1	11:34am	11:44am	7SL	awl	1			
4. 00010785	Guest Bedroom	76	63	1	11:45am	11:50am	7SL	awl	1			
5. 00010449	Living Room	76	63	1	11:52am	11:57am	7SL	awl	1			
6. 00010701	Master Bedroom	76	63	1	11:58am	12:03pm	7SL	awl	1			
7. 00010650	Outside Backline	92	43	1	12:05pm	12:10pm	7SL	awl	1			
8.												
9.												
10.												

Payment options		Released by (your signature)		Received Date Stamp:	
☐ Invoice to account	☐ Process credit card on file				
Field Notes:					
Special Instructions:					
Tracking #:					

Lab Job # 25-111919 25-111920
2501 Mayes Road, Ste # 110 | Carrollton, TX 75006 | info@moldlab.com | 1-800-416-6553
Page 1 of 1

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation, ALHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:

Kristina Rucker, Lab Director



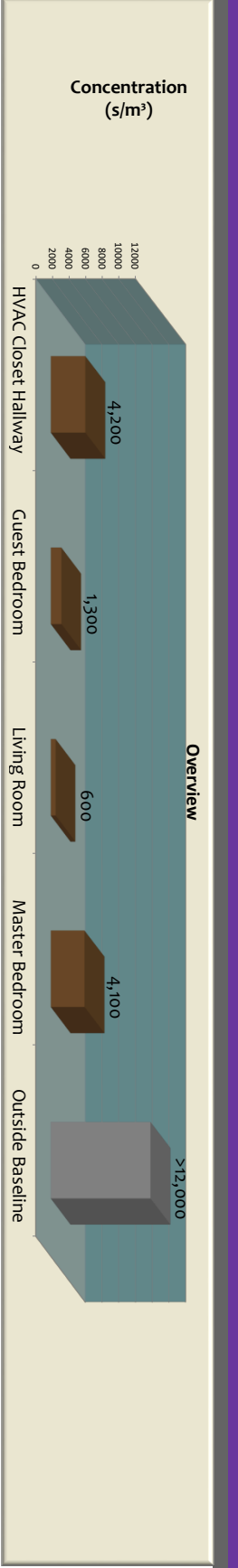
moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6553
Website - www.moldlab.com

PROJECT INFORMATION:
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)

**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800

This report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ



Location to Reference Comparison										Compares
Identification		HVAC Closet Hallway		Guest Bedroom		Living Room		Master Bedroom		
Sample Number	Volume (l)	00010444		00010785		00010449		00010704		
		75		75		75		75		
		Raw	s/m³	Raw	s/m³	Raw	s/m³	Raw	s/m³	
Alternaria		-	-	-	-	1	43	1	43	☞
Ascoportes, non-specified		1	43	1	43	-	-	-	-	☞
Aspergillus/Penicillium-like		71	3,000	12	510	2	85	5	210	☞
Basidiospores, non-specified		-	-	-	-	1	43	-	-	☞
Bipolaris/Dreschlera/Helminthosporium/Exseroi		-	-	1	43	-	-	-	-	☞
Cercospora		-	-	-	-	-	-	1	43	☞
Chaetomium		15	640	7	300	-	-	5	210	☞
Cladosporium		3	130	7	300	7	300	67	2,900	☞
Curvularia		-	-	-	-	-	-	-	-	☞
Fusarium		-	-	-	-	-	-	-	-	☞
Hyphal Fragments		7	300	2	85	1	43	16	680	☞
Myxomycetes/Periconia/Smut/Rust		-	-	-	-	1	43	-	-	☞
Nigrospora		1	43	-	-	1	43	-	-	☞
Pithomyces		-	-	-	-	-	-	-	-	☞
Yeast-like fungi		-	-	-	-	-	-	-	-	☞
Total Fungal Structures		98	4,200	30	1,300	14	600	95	4,100	
Non-Microbial Debris Field Rating			Light		Light		Light		Light	

Outside Baseline		
00010650		
75		
Raw	s/m³	
7	300	
7	300	
30	1,300	
12	510	
-	-	
4	170	
-	-	
>100	>8,500	
2	85	
4	170	
2	85	
4	170	
2	85	
>180	>12,000	
Light		

Submitted By: Dayna Boor | Submittal Date: 9/4/2025 1:13:00 PM | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Analyst: Steven Reese

If a structure is not listed, or listed with a (-), it was not observed in the sample(s) submitted. Debris rating estimates the total non-fungal particle load on the sample. Ratings of None Detected, Trace (>0 to 5%), Light (>5% to 25%), Moderate (>25% to 75%), Heavy (>75% to 90%), and Occluded (>90%) are used. A rating of Light or higher may have a higher number of structures present than indicated. The higher the rating, the greater the negative bias. A rating of Occluded makes quantitative results impossible; instead, any structures detected will be marked as Detected. Concentrations are rounded to two significant figures. The 'total' field may not add up to sum of individual types due to this rounding. The maximum raw count is 100 due to stopping rules. The calculated concentration for a 100 raw count sample will vary depending on the traverse in which the stopping rule was applied. Sample volumes are provided by the customer and impact the validity of structure concentrations. Yellow highlighted concentrations are higher than the reference. Samples received and analyzed by Moldlab, Ltd.

PROJECT INFORMATION
Weinstein - 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

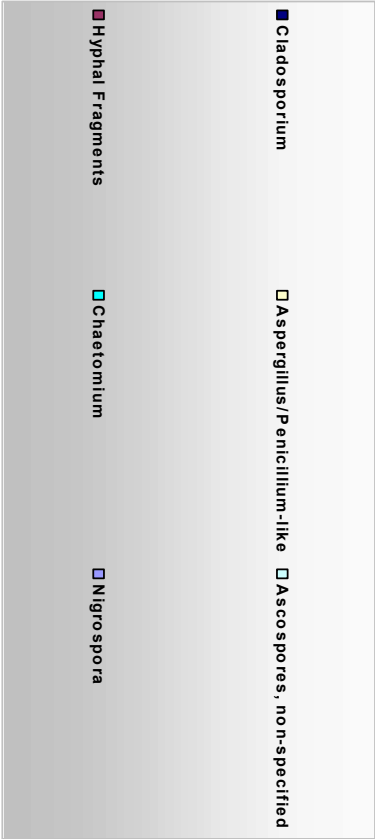
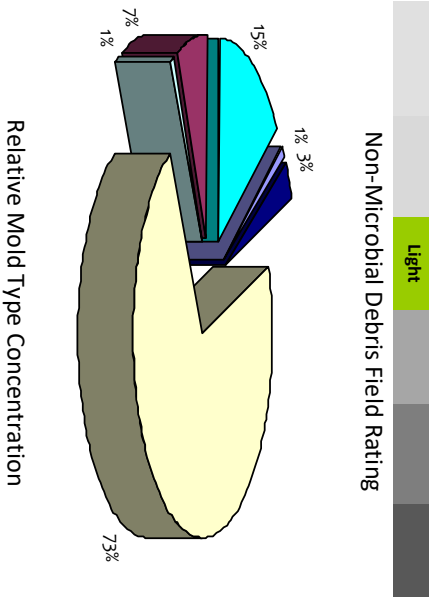
Report
Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)

**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Sample No: 00010444	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:39
Location: HVAC Closet Hallway	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:44

Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Ascospores, non-specified	1	43	43	Aspergillus/Penicillium-like	71	3,000	43
Chaetomium	15	640	43	Cladosporium	3	130	43
Nigrospora	1	43	43				
Hyalal Fragments	7	300	43				
Total Fungal Structures/m ³ *:		4,200					



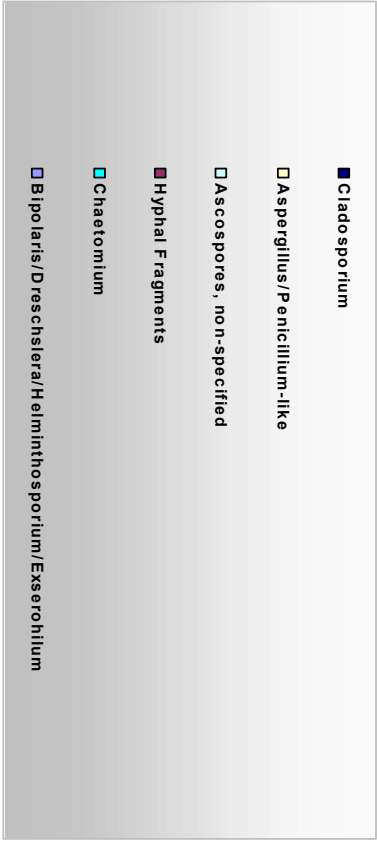
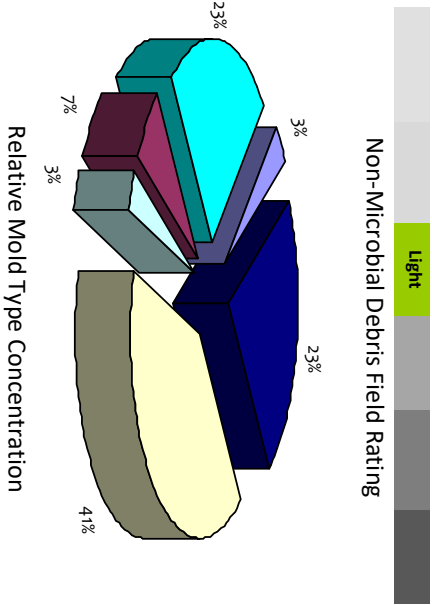
Tech Notes:



This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Sample No: 00010785	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:45
Location: Guest Bedroom	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:50

Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Ascospores, non-specified	1	43	43	Aspergillus/Penicillium-like	12	510	43
Bipolaris/Dreschlera/Helminthosporium/	1	43	43	Chaetomium	7	300	43
Cladosporium	7	300	43				
Hypal Fragments	2	85	43				
Total Fungal Structures/m ³ *:		1,300					



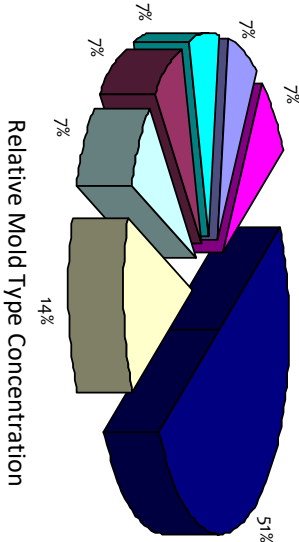
Tech Notes:

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Sample No: 00010449	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:52
Location: Living Room	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:57

Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Alternaria	1	43	43	Aspergillus/Penicillium-like	2	85	43
Basidiospores, non-specified	1	43	43	Cladosporium	7	300	43
Myxomycetes/Periconia/Smut/Rust	1	43	43	Nigrospora	1	43	43
Hypal Fragments	1	43	43				
Total Fungal Structures/m ³ *:		600					

Non-Microbial Debris Field Rating



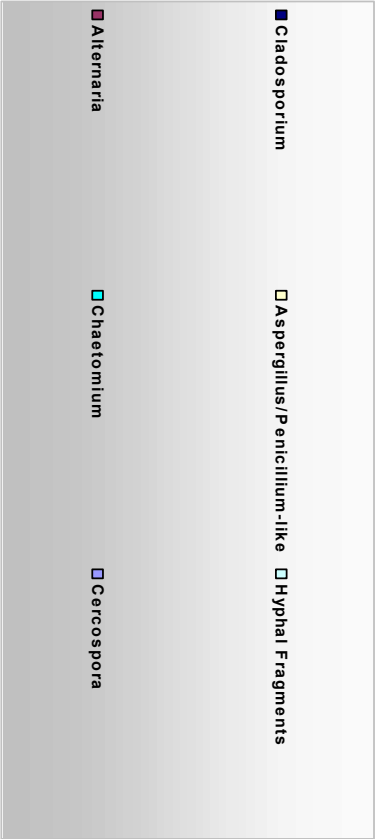
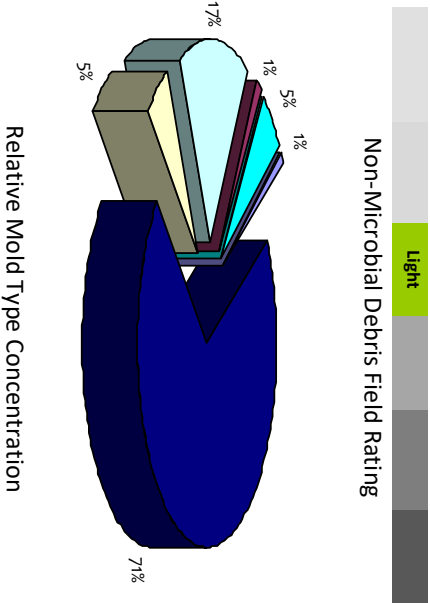
■ Cladosporium	□ Aspergillus/Penicillium-like
□ Basidiospores, non-specified	■ Hypal Fragments
■ Alternaria	■ Myxomycetes/Periconia/Smut/Rust
■ Nigrospora	

Tech Notes:

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Sample No: 00010704	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:58
Location: Master Bedroom	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 12:03

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Alternaria	1	43	43	Aspergillus/Penicillium-like	5	210	43
Cercospora	1	43	43	Chaetomium	5	210	43
Cladosporium	67	2,900	43				
Hypheal Fragments	16	680	43				
Total Fungal Structures/m³*:		4,100					



Tech Notes:

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Sample No: 00010650		Sample Type: Allergenco D		Analysis Date: 9/5/2025		Sample Start Time: 12:05	
Location: Outside Baseline		Volume (L): 75		% Sample Analyzed**: 31.25%		Sample Stop Time: 12:10	
Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Alternaria	7	300	43	Asco spores, non-specified	7	300	43
Aspergillus/Penicillium-like	30	1,300	43	Basidiospores, non-specified	12	510	43
Cercospora	4	170	43	Cladosporium	>100	>8,500	85
Curvularia	2	85	43	Fusarium	4	170	43
Myxomycetes/Periconia/Smut/Rust	2	85	43	Nigrospora	4	170	43
Pithomyces	2	85	43	Yeast-like fungi	2	85	43
Hyphal Fragments	6	260	43				
Total Fungal Structures/m ³ *:		>12,000					



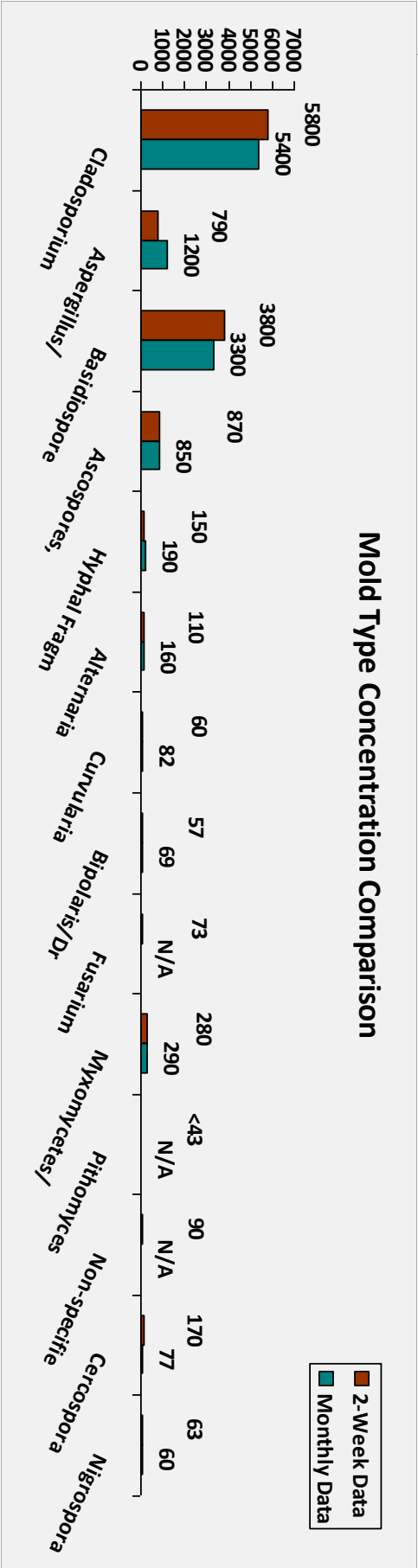
Tech Notes:

Submitted By: Danya Boor | var: Hand Delivered | Submit Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-11319 | Technician: Steven Reese

If a structure is not listed, it was not observed in the sample(s) submitted. Debris rating estimates the total non-fungal particle load on the sample. Ratings of Non Detected, Trace (>0 to 5%), Light (>5% to 25%), Moderate (>25% to 75%), Heavy (>75% to 90%), and Occluded (>90%) are used. A rating of Light or higher may have a higher number of structures present than indicated. The higher the rating, the greater the negative bias. A rating of Occluded makes quantitative results impossible: any structures detected will be marked as Detected. Concentrations are rounded to two significant figures. The 'total' field may not add up to the sum of individual types due to this rounding. The maximum raw count is 100 due to stopping rules. The calculated concentration for a 100 raw count sample will vary depending on the traverse in which the stopping rule was applied. Sample volumes are provided by the customer and impact the validity of structure concentrations. *s/m³ is structures/m³. A structure is the analyte of interest chosen by the client. **Refers to percent of sample in which structures are enumerated. If you have any questions regarding count rules, please call the lab. Samples received and analyzed by Moldlab, Ltd.

LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782.

2-Week Average Outdoor Data		September Historical Average Outdoor Data	
Identification	Concentration (s/m ³)	Identification	Concentration (s/m ³)
Alternaria	110	Alternaria	160
Ascospores, non-specified	870	Ascospores, non-specified	850
Aspergillus/Penicillium-like	790	Aspergillus/Penicillium-like	1,200
Basidiospores, non-specified	3,800	Basidiospores, non-specified	3,300
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	57	Bipolaris/Dreschlera/Helminthosporium/Exserohilum	69
Cercospora	170	Cercospora	77
Cladosporium	5,800	Cladosporium	5,400
Curvularia	60	Curvularia	82
Fusarium	73	Hyphal Fragments	190
Hyphal Fragments	150	Myxomycetes/Periconia/Smut/Rust	290
Myxomycetes/Periconia/Smut/Rust	280	Nigrospora	60
Nigrospora	63		
Non-specified spore	90		
Pithomyces	<43		



PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Air Exam Glossary
Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)


**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus.

The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition

Alternaria (al-tur-nair-ee-uh)

Classification: Common Allergen / Contaminant / Opportunistic Pathogen (rarely)

Possible Health Effect: It is an important allergen and common agent of hay fever, asthma, and other allergy related symptoms, including sinusitis.

Macroscopic Morphology: The mold can appear gray / white at first than become greenish / black or brown with a lighter border over time.

Environment: Soil, Plants, Commonly found indoors on food and textiles.

Ascoletes, non-specified (ass-co-'spores)

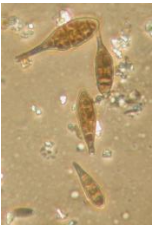
Classification: These are a very large category of spores.

Possible Health Effect: Because so few of the Ascomycetes will grow in the laboratory setting, very little is known about their health effects on humans.

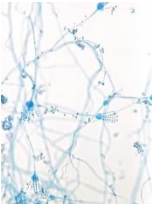
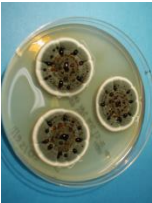
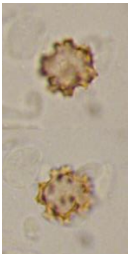
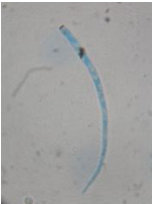
Macroscopic Morphology: Most will appear as specks or spots or bumps on leaves and wood.

Environment: Leaves, Wood. Also, most are plant saprophytes playing the role of "recyclers". Spores are produced in sac-like structures called asci.

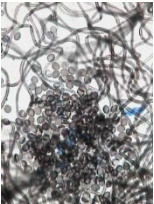
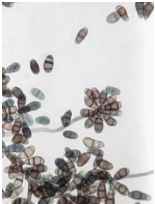
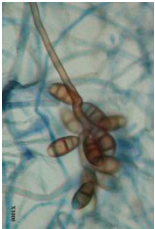
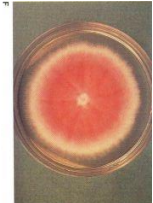
Images



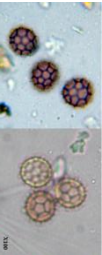
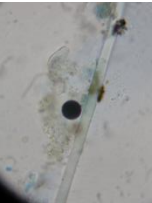
Tech Notes:

Definition		Images	
Aspergillus/Penicillium-like (as-per-jill-us) / (pen-uh-sill-ee-um) Classification: Allergen / Contaminant / Opportunistic Pathogen Possible Health Effect: Aspergillus is common on tape lift samples and air samples, but its spores are indistinguishable from Penicillium spores in most cases. There are a few exceptions but the species ID must be made from culture, and is still a difficult job. Health effects vary by species, but many are listed as allergens. Some species can produce toxins that may have significant health effects in humans. Aspergillus is listed as one of the most infectious types of mold, but infections are not common in normal healthy immune systems. However, if you are immune suppressed or compromised this should be discussed with your physician. Macroscopic Morphology: Aspergillus can appear in a wide range of colors from white to purple, yellow to green, see images next to text. Environment: Commonly found in the environment around the world.		 	
Basidiospores, non-specified (bah-sid-ee-oh'-spores) Classification: Allergen / Contaminant. Another large general class of spores formed on a structure called a basidium, mushrooms belong to this group. Possible Health Effect: Allergen and possible poisoning if certain species are ingested. Macroscopic Morphology: Mushrooms, puffballs and bracket fungi. Environment: This category of spores is found in the outdoor air make up. This is a common cause of Wood Rot. High concentrations in an indoor air sample might be indicative of water damage or too high humidity. Often abundant at night or pre-dawn hours when there is high humidity.		 	
Biopolaris/Helminthosporium/Exserohilum types (bye-pole-air-us)(dresh-lair'-uh) / Classification: Contaminant / Opportunistic pathogen Possible Health Effect: Allergenic and the most common agent for allergic fungal sinusitis. Various but uncommon infections of the eye, nose, lungs and skin in debilitated hosts. Macroscopic Morphology: The mold will appear brownish / black with a black matted middle and a raised lighter color periphery. Environment: The fungus is a saprophyte and can be found in soil.		 	
Cercospora group (sir-ko-spore-ra) Classification: Contaminant / Plant Pathogen Possible Health Effect: None found at this time Macroscopic Morphology: reddish-brown to gray-black/wooly Environment: Plants-cause of leaf spot on sugar beets		 	

Tech Notes:

Definition		Images	
Chaetomium (kay- toe-me-un) Classification: Contaminant / some report allergen Possible Health Effect: Rarely involved in systemic and cutaneous disease and sometimes reported to be allergenic. Some species can produce toxins, and there is some research interest on whether these toxins can cause cancer. Macroscopic Morphology: The surface of the mold is cottony, spreading and becomes tan or gray with age. With close examination the surface sometimes will appear to have little black specks like pepper. Environment: Chaetomium is one of the few Ascomycetes that will grow and produce spores indoors. It prefers to grow on cellulose for example paper and wood. Primary IAQ importance is that it will grow in the same conditions as Stachybotrys (wet cellulose) and sheetrock paper. Colonies of Chaetomium and Stachybotrys will be growing on top of one another. Also, found in soil and hay.		 	
Cladosporium (clad-oh-spore-ee-un) Classification: Common Allergen/ Contaminant Possible Health Effect: Rarely pathogenic, it is a common agent of hay fever and asthma and other allergy related symptoms. Macroscopic Morphology: Surface of the mold is greenish brown or can appear black in color with age and have heap or folded appearance. Environment: Cladosporium can be found in most air samples most of the time. It is very common. Cladosporium is one of the types of mold found growing on HVAC vent covers and grills. It can grow on leaves, textiles, wood, paper, and decaying vegetation.		 	
Curvularia (curve-you-lair-ee-uh) Classification: Contaminant / Opportunistic Pathogen Possible Health Effect: Some sources site it as an allergen. Rare infections of the cornea, nail and sinuses primarily in immunocompromised individuals. Macroscopic Morphology: The mold appears as olive green to brown or black with a pink wooly surface. Environment: The mold is common in the air and in the soil as a saprophyte and in textiles and decaying vegetation.		 	
Fusarium (few-sath-ee-un) Classification: Contaminant / Opportunistic pathogen Possible Health Effect: Associated with eye infections and occasionally skin and nail. Produces a variety of toxins mainly important when ingested particularly through contaminated grain products. Reports of infections in burn victims and compromised hosts. Macroscopic Morphology: It grows quickly and is at first white and cottony but will turn pinkish with age. Environment: Found on fruit and grains and common in soil. Indoors it can sometimes contaminate humidifiers.		 	

Tech Notes:

Definition		Images
Hyphal Fragments (hy-full) Classification: N/A Possible Health Effect: N/A Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone. Environment: N/A		 
Myxomycete / Periconia / Smut (mix-oh'-my-seet) / (pare-i-cone-ee-uh) / (smut) Classification: Generally a plant pathogen Possible Health Effect: Generally plant pathogens. Some allergenic properties have been reported but generally pose no health concerns to humans. Macroscopic Morphology: N/A Environment: This group is associated with living and decaying plants as well as decaying wood. Sometimes can be found indoors. <i>*myxomycete is technically not a mold but we have included it in this group due to morphological similarities.</i>		
Nitrospora (nih-grow-spore-uh) Classification: Saprophyte, not known to be pathogenic. Possible Health Effect: Rarely Reported Macroscopic Morphology: Woolly, white then gray with age. Environment: Worldwide in soil, parasitic and saprophytic on plants.		 
Pithomyces (pith-oh-my-ceeds) Classification: Contaminant Possible Health Effect: No reports of allergies or infections. Macroscopic Morphology: Light to dark brown and cottony, sometimes showing tufts of distinct fluff in the middle of colony. Environment: Worldwide, soil, plant materials, saprophyte, rarely found indoor, but can grow on paper.		 
Yeast-like fungi Classification: This is a category we assign to spores that have morphological characteristics similar to yeast. Examples of yeast-like mold are Acromonium and Exophiala		 

Submitted By: Dayna Boor | var: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

Results apply only to samples tested. Results may not be reported or reproduced except in full without written permission from Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.
LAB0137 by the Texas Dept. of Licensing and Regulation, AHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.

PROJECT INFORMATION
Weinstein - 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Air Exam FAQ

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

How do I know if the air sample results are normal?

The general guideline is that the concentration and types of mold in the inside sample should be similar to or lower than the concentration in the Outside sample. Currently there are no dose response relationship statistics for allowable or safe levels of aeroallergens.

What is the Air Calculated Concentration?

The Calculated Concentration is a measure of the concentration of mold spores in the air, and is listed as spores per cubic meter of air. It is useful for comparing samples and understanding how many spores are in a given section of air. This is calculated based on the air flow rate of the pump, the time the pump was run for, the proportion of the sample enumerated, and the raw count. It is calculated as $(100/\text{Proportion of Sample Analyzed})/(\text{Air Flow Rate} * \text{Pump Run Time}) * (\text{Raw Count})$. This number is then rounded to two significant figures. The calculated concentration is useful for comparing samples with different volumes, sample types, and counting methods. It is also useful for understanding how many spores there are in a given section of air. If you believe that the air flow rate and pump run time may be incorrect for some or all of your samples, please contact the lab and we can correct this for you.

What is the Raw Count on the report?

The 'raw' count is how many spores the technician actually viewed on your sample while looking through the microscope. We use this number to generate the calculated concentration. Moldlab stops counting spores at 100 and reports the raw count as '>100'.

Can you tell me a little more about mold air samples?

This type of sample is a non-cultured air sample, which means the lab did not grow the samples in a Petri dish, and is commonly referred to as a "snapshot" of the air at the exact time of sampling. The test works by pumping a controlled volume of air through a collection container called a spore trap. The spore trap has a sticky substance on its surface which captures any particles from the air, including mold spores. Test results account for both live and dead spores.

What is the 'debris field rating'?

The 'debris field rating' is a visual estimate made by the technician of how much non-fungal debris there is on the sample. The rating includes all non fungal particulate (fibers, debris, pollen, insects, skin, etc.). The scale includes ratings of 'None Detected', 'Trace', 'Minor', 'Moderate', 'Heavy', and 'Occluded'. 'None Detected' indicates no sample was detected on the sample (possibly due to a bad sample). 'Trace' indicates trace amounts of debris are present. 'Minor' indicates small amounts of debris are present. 'Moderate' indicates and average amount of debris is present. 'Heavy' indicates a high concentration of debris articulate. Lastly, 'Occluded' indicates the amount of particulate on the sample is so concentrated that the technician could not see through it to count and identify spores accurately. The higher the debris rating, the greater the negative bias of results.

What is a 'significant figure'?

Significant figures are used in science to give a better representation of the accuracy of a number. All non-zero digits in a number are significant. Additionally, any digits to the right of a decimal are significant, whether they are zero or not, and all digits in between two non-zero digits are also significant. Significant figures give an understanding of what decimal place a number is accurate to. For example, if 43 is given as 43.0, it is assumed that the "true" value is somewhere between 42.95 and 43.049. If it is given as 43.00, it is assumed the "true" value is somewhere between 42.995 and 43.0049, which is much more precise. Similarly, if 431 is shown as 431, it is assumed that the analysis is accurate to between 430.5 and 431.49, while if it is given as 430, it is only assumed to be accurate to between 425 and 434.9. In this report, all calculated numbers such as the minimum reporting limit and the calculated concentration are rounded to two significant figures. All numbers that were not calculated are given without rounding.

What is the 'minimum reporting limit'?

A minimum reporting limit is exactly what it sounds like- the minimum number that must be reported for the calculated concentration if any spores are detected. This is calculated as $(100/\text{Proportion of Sample Analyzed})/(\text{Air Flow Rate} * \text{Pump Run Time})$. This number is essentially the amount a single spore increases the calculated concentration by. All spore types that are not listed as having a raw count of 1 or greater have a calculated concentration of less than the minimum reporting limit. It cannot be said based upon a raw count of zero that the true concentration of that spore type is 0, however, because the testing procedure is not sufficiently precise. For this reason, the minimum reporting limit gives a useful measure of the minimum detectable concentration of mold types. Bear in mind that any negative bias due to the debris field rating IS NOT accounted for in this minimum reporting limit.

Tech Notes:

Submitted By: Danya Boor | Waf Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-11319 | Technician: Steven Reese

Results apply only to samples tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.

LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.

PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Direct Exam Chain of Custody

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

DALLAS MOLD CONSULTANTS
(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

Company name		Dallas Mold Consultants		State	TX	ZIP	75206
Address		8080 N. Central Expy Ste 1700		City	Dallas		
Project name		Weinstein - 090225		Project address	220 E Broadway Ave. #2145, Ft Worth TX		
Project address		220 E Broadway Ave. #2145		Turnaround Time	76104		
Project (optional)				Email address:	dayna@dallasmoldconsultants.com		
Sample Date		10/17/2025		3HR	6HR	24HR	48HR
				☐	☐	☒	☐
				30AY	50AY		
				☐	☐		
				CC:			
				CC:			

Test Codes				MOLD				ASBESTOS					
				Surface Samples									
				10. Tap/Bulk, mold & other particles - 40µm									
Sample # or ID	Sample Name, Location or Description	Temp	RH%	Test code	Time on (applicable to air samples only)	Time off (applicable to air samples only)	Total Vol (applicable to air samples only)	Sample Type (Bulk, Tap, Swab, Airborne, etc.)	No. of Containers				
1. 10735-01	Entry Drywall	79	58	3				Swab	1				
2.													
3.													
4.													
5.													
6.													
7.													
8.													
9.													
10.													

Payment options	☐ Invoice to account	Released by (your signature)	By signing this document, you certify that these samples were not tampered with and that you have read and accept the results. For return of samples, availability of lab data may vary.	Received Date Stamp:
Special instructions:	☐ Process credit card on file			OCT 17 2025
Field Notes:	☐ Enclosed check			
Tracking #:				

Rev 7, Issue Date: 3/24/2022 2501 Mayes Road, Ste. #110 Carrollton, TX 75006 | info@moldlab.com | 1.866.416.6653 Page ___ of ___

25-113841

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 10/17/2025 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Desly Regalado

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation, ALHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:

Kristina Rucker, Lab Director



moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
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Toll Free (866) 416-6653
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Report
Test Code 3: Direct Exam -Fungal limited
Analysis Method: Internal SOP M-3

**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Sample No:	101725-01	Analysis Date:	10/18/2025	Sample Type:	Swab
Location:	Entry Drywall				

Identification	Rating		
Alternaria	Minor		
Ascospores, non-specified	Minor		
Bipolaris/Dreschslera/Helminthosporium/Exserohilum	Minor		
Curvularia	Minor		
Myxomycetes/Periconia/Smut/Rust	Minor		
Nigrospora	Minor		
Non-specified spore	Minor		
Pithomyces	Minor		
Hyphal Fragments	Minor		

Tech Notes:

Submitted By: Dayna Boor | var: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

Results apply only to samples tested. Results may not be reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. Field blank correction of results is not applied. Rating is based on the average Qualified Structures (QS) per Field of View (FV). A QS is the analyte of interest chosen by the client. No Mold Detected (0 QS), Minor (1 QS/FV or less), Moderate (>1 to 3 QS/FV), and Heavy (>3 QS/FV) ratings are used. QS observed from the samples submitted are listed on this report. If a QS is not listed, it was not observed in the samples submitted. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.



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PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Direct Exam FAQ

Test Code 3: Direct Exam -Fungal limited
Analysis Method: Internal SOP M-3


**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

What does the rating system mean?

Mold is a normal part of our environment, and mold spores can settle out of the air into accumulated dust. This can cause 'minor' ratings of several different types of mold to appear even in a typical house dust sample, and these may not necessarily be a cause for concern. However, a 'heavy' rating may indicate that the sample was taken from a source of mold. Below are the exact criteria for each rating:

- 'No mold detected' means that the sample submitted did **not** contain a detectable level of mold.
- 'Minor' means that the technician observed 1 or fewer structures of mold per field of view under the microscope.
- 'Moderate' means 1 to 3 structures of mold were detected per field of view.
- 'Heavy' means greater than 3 structures were detected per field of view.

Always take into consideration the sample as a whole when interpreting results. It is important to also consider the types of mold detected and the location the sample was taken.

How do I learn more about the types of mold listed on my report?

Each report comes with its own mold dictionary, called the Glossary. Simply scroll to the Glossary section of your report and each mold type is listed alphabetically. There you'll find helpful information about each mold type.

Do I have the Black Mold?

Usually when a customer asks this question he/she is referring to *Stachybotrys*. Although *Stachybotrys* is black in color, so are many other types of mold. Do not discount the importance of other types of mold listed on your report simply because you do not see the word *Stachybotrys* or Black mold. For more about 'black mold', visit our website at: <https://www.moldlab.com/black-mold>

How do I get rid of it?

Many molds are allergens and some may be toxicogenic. Disturbing the mold with cleaning methods increases the chances of exposure to the particulate. Mold clean up and disposal methods vary greatly from company to company. A good rule of thumb is that if the contaminated area is small and the material is non porous, such as metal, it can be cleaned by traditional methods, taking care to use personal protective equipment. Porous materials on the other hand, such as wood, textiles, or sheetrock, are difficult to clean because of the microscopic holes in the material. The 'root-like' structures of the mold called hyphae/mycelia can grow down into the holes and make it hard to clean effectively. The surface will appear clean but as soon as conditions are favorable the mold can start to grow again. Here is a link to the EPA mold help guide: <https://www.epa.gov/mold/brief-guide-mold-moisture-and-your-home>

Can we still live here?

There are no established 'safe' levels of mold, just as there are no established 'unsafe' levels of mold, and individuals have different resistances and reactions to mold. Persons that are most likely to be adversely affected by mold exposure are: children, elderly, immunocompromised, and persons with respiratory disorders. If you suspect you are experiencing adverse health effects as a result of mold, please consult a medical professional. Please note that Moldlab, Ltd. is not a medical, or clinical laboratory and we do not offer medical consulting or advice.

Tech Notes:

Submitted By: Dayna Boor | War: Hand Delivered | Submittal Date: 1/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Daisy Regalado

Results apply only to samples tested. Results may not be reported or reproduced except in full without written approval of Moldlab. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.

LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.


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Website - www.moldlab.com

PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Direct Exam Glossary

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



This test report contains the following sections: Cover, Report, FAQ, and Glossary

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus.

The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition

Alternaria (all-tur-nair-ee-un)

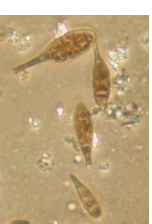
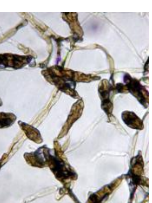
Classification: Common Allergen / Contaminant / Opportunistic Pathogen (rarely)

Possible Health Effect: It is an important allergen and common agent of hay fever, asthma, and other allergy related symptoms, including sinusitis.

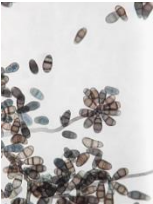
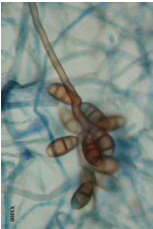
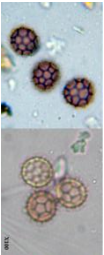
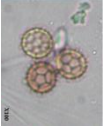
Macroscopic Morphology: The mold can appear gray / white at first then become greenish / black or brown with a lighter border over time.

Environment: Soil, Plants, Commonly found indoors on food and textiles.

Images

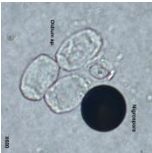
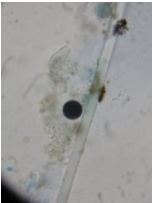


Tech Notes:

Definition		Images	
Ascomyces, non-specified (ass-co'-spores) Classification: These are a very large category of spores. Possible Health Effect: Because so few of the Ascomycetes will grow in the laboratory setting, very little is known about their health effects on humans. Macroscopic Morphology: Most will appear as specks or spots or bumps on leaves and wood. Environment: Leaves, Wood. Also, most are plant saprophytes playing the role of "recyclers". Spores are produced in sac-like structures called asci.		 	
Bipolaris/Dreschlera/Helminthosporium/Exserohilum types (bye-pole-air-us)(dresh-lair'-uh) / Classification: Contaminant / Opportunistic pathogen Possible Health Effect: Allergenic and the most common agent for allergic fungal sinusitis. Various but uncommon infections of the eye, nose, lungs and skin in debilitated hosts. Macroscopic Morphology: The mold will appear brownish / black with a black matted middle and a raised lighter color periphery. Environment: The fungus is a saprophyte and can be found in soil.		 	
Curvularia (curve-you-lair'-ee-uh) Classification: Contaminant / Opportunistic Pathogen Possible Health Effect: Some sources site it as an allergen. Rare infections of the cornea, nail and sinuses primarily in Immunocompromised individuals. Macroscopic Morphology: The mold appears as olive green to brown or black with a pink wooly surface. Environment: The mold is common in the air and in the soil as a saprophyte and in textiles and decaying vegetation.		 	
Hyphal Fragments (hy-full) Classification: N/A Possible Health Effect: N/A Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone. Environment: N/A		 	
Myxomycete / Periconia / Smut (mix-oh'-my-seat) / (pare-i-cone-ee-uh) / (smut) Classification: Generally a plant pathogen Possible Health Effect: Generally plant pathogens. Some allergenic properties have been reported but generally pose no health concerns to humans. Macroscopic Morphology: N/A Environment: This group is associated with living and decaying plants as well as decaying wood. Sometimes can be found indoors. <i>*myxomycete is technically not a mold but we have included it in this group due to morphological similarities.</i>		 	

Tech Notes:

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Definition		Images	
Microspora (migh-grow-spore-uh) Classification: Saprophyte, not known to be pathogenic. Possible Health Effect: Rarely Reported Macroscopic Morphology: Woolly, white then gray with age. Environment: Worldwide in soil, parasitic and saprophytic on plants.		 	
Non-specified spore The spore is NOT Stachybotrys, and could not be identified as any of the other mold types this lab identifies. It may be an unusual mold type that is not identifiable microscopically, or the spore may be damaged. However, the spore was definitively fungal. Classification: N/A Macroscopic Morphology: N/A Environment: N/A		 	
Pithomyces (pith-oh-my-ces) Classification: Contaminant Possible Health Effect: No reports of allergies or infections. Macroscopic Morphology: Light to dark brown and cottony, sometimes showing tufts of distinct fluff in the middle of colony. Environment: Worldwide, soil, plant materials, saprophyte, rarely found indoor, but can grow on paper.			

Tech Notes:

Submitted By: Dayna Boor | var: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Daisy Regalado

Results apply only to samples tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd. LAB0137 by the Texas Dept. of Licensing and Regulation, AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.



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**220 E Broadway Ave. #2145
Ft. Worth, TX 76104**

MOLD REMEDIATION PROTOCOL

**Project No: Weinstein-090225
Inspection Date: 09/02/2025
Remediation Protocol Date:
09/08/2025**

Prepared By:

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Written By:

Dayna Boor

Licensed Mold Assessment Consultant - TDLR # MAC1687, Exp. 02/27/2026

Licensed Mold Remediation Contractor - TDLR # MRC1602, Exp. 04/02/2027

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Section 1.0 Project Background

1.1 Site Description

Building Type: Residential, Multi-Family, Apartment, 1st Floor, Slab Foundation

Age: 2019

Scope: Demolition, Content Cleaning, Environmental Cleaning, HVAC System and Duct Cleaning

1.2 Initial Observations and Findings

Clients requested a mold inspection and remediation protocol write-up after a water loss related to the HVAC condensation drain line caused water damage to the mechanical closet and guest bedroom of this unit.

At the time of inspection the humidity is ~63% Rh and there is visible growth on the inside of the utility closet, behind baseboard in the hallway, and behind baseboard in the guest bedroom behind the utility closet.

The laminate flooring surrounding the area has elevated moisture readings.

Remediation workers put up some containment. There is no equipment on site and no negative pressure on the containment.

Air samples were collected in the mechanical closet hallway, guest bedroom, living room, and master bedroom for comparison with an outdoor air sample.

Tape lift samples were collected from visible growth on the drywall in the hallway and in the guest bedroom for lab analysis.

FINDINGS and RECOMMENDATIONS:

The indoor air samples show contamination with *Aspergillus* and *Chaetomium* mold spores throughout the apartment. *Chaetomium* mold is associated with long-term water damage on building materials.

Due to elevated molds in the air samples, all contents in the apartment should be considered contaminated.

See lab results on next page.

See pictures on pages 12-14.

Recommending mold remediation, content cleaning, environmental cleaning, and HVAC cleaning as outlined in this protocol on pages 7-11.

STATE NOTIFICATION

The material to be removed and cleaned is greater than 25 square feet which requires state notification and a 5-day waiting period before remediation can begin. The total of all material removal specified in this protocol is based on areas of visible mold growth, elevated moisture levels, and visible water damaged material observed during the mold inspection performed on 09/02/2025.

Section 1.3

Initial Microbial Sampling Results

Air samples collected using Zefon Bio-Pump with Air-O-Cell cassette at a flow rate of 15 LPM.

Baseline outdoor sample collected and indoor air samples collected in the mechanical closet hallway, guest bedroom, living room, and master bedroom.

Surface tape lift samples collected from visible growth in the hallway and in the guest bedroom behind the baseboards.

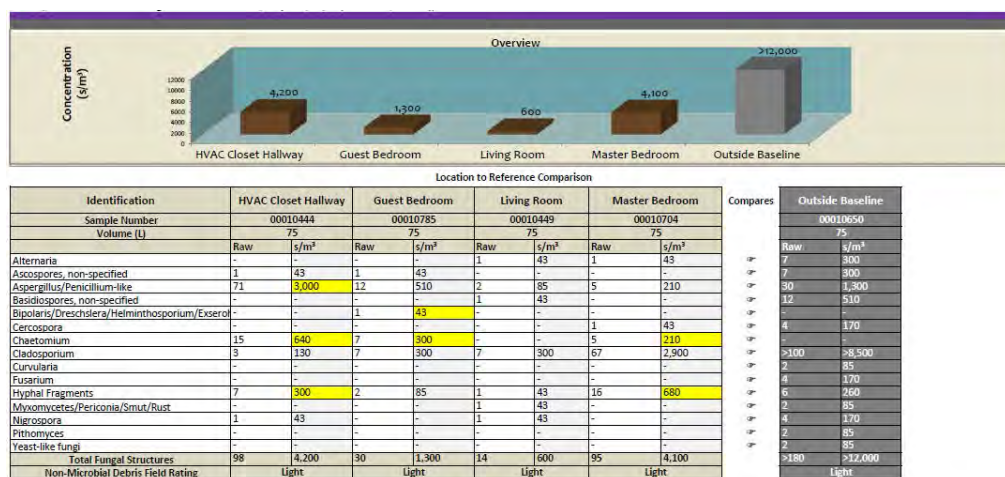
RESULTS: The indoor air samples identified elevated *Aspergillus* mold spores in the mechanical closet hallway and the presence of *Chaetomium* mold spores in the hallway, guest bedroom, and master bedroom air samples.

The tape lift sample from the drywall in the guest bedroom identified a **heavy concentration** of *Chaetomium* mold spores and a **minor concentration** of *Aspergillus* and *Cladosporium* mold spores.

The tape lift sample from the drywall in the utility closet hallway identified a **heavy concentration** of *Chaetomium* mold spores.

See Lab Snapshots below and Full Lab Reports for more information

Air Samples



Surface Tape Lift Samples

Sample No:	090425-01	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	Guest Bedroom Tape Lift				
Identification					
Aspergillus/Penicillium-like			Rating		
Chaetomium			Minor		
Cladosporium			Heavy		
Hyphal Fragments			Minor		
			Heavy		
Sample No:	090425-02	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	HVAC Closet Drywall Tape Lift				
Identification					
Chaetomium			Rating		
Hyphal Fragments			Heavy		
			Heavy		

Sample collection and analyses were performed according to Minimum Work Practices and Procedures for Mold Assessment of the Texas Mold Assessment and Remediation Rules. Microbial samples collected by Dallas Mold Consultants are submitted under chain of custody to The Moldlab, a Texas licensed lab (TDSHS license #LAB0137). If samples were collected, full lab report will be sent as a separate attachment.

Section 1.4

Reliance

This protocol is for the exclusive use of the client for the project being discussed. This protocol is not a certificate, assurance, warranty or guarantee of future conditions or performance, but is specific to the conditions present and detected on the date of the mold inspection. This protocol is valid for 60 days from the day it was written.

The Texas Department of Licensing and Regulation regulates mold remediation in the state by administering the Texas Mold Assessors and Remediators Occupations Code and Administrative Rules. Additional information regarding the Texas Mold Program and the state mold statute can be found on their homepage at www.tdlr.texas.gov/mld/mld.htm.

Anyone who believes a company or individual has violated the rules can file a complaint with TDLR. For information on this process, call 1-800-803-9202, or complete the online complaint form.

**Texas Department of Licensing and Regulation
Enforcement Division
P.O. Box 12157
Austin, TX 78711
enforcement@tdlr.texas.gov
www.tdlr.texas.gov/complaints**

Section 2.0

Regulations and Notices

2.1 Texas Mold Assessment and Remediation Regulations

It is critical that licensed, trained, and qualified mold remediation professionals perform the clean-up work. Mold Remediation should be performed to the standards found in IICRC S520, Standard and Reference Guide for Mold Remediation, and in accordance with the laws of the state of Texas. In accordance with the Texas Mold Assessment and Remediation Rules (Rules), 16 Tex. Admin. Code, Chapter 78, if a licensed Remediation Contractor is doing the mold remediation, a Mold Remediation Protocol is required.

According to the Texas Department of Licensing and Regulation (TDLR) Texas Mold Assessors and Remediators Administrative Rules, state notification is required if more than 25 contiguous square feet of mold contaminated material is affected in any one area. This notification requires a five (5) business day waiting period between the notification date and the remediation start date. This client is encouraged to work with a licensed Mold Remediation Contractor to ensure minimal project disruption and down time should this remediation effort exceed the state mandated limits and have to be registered.

Contaminated materials should be removed using appropriate containment and removal practices in accordance with the TMARR. Proper engineering controls must be in place to prevent the further spreading of airborne mold spores.

2.2 TAHPR - Texas Asbestos Health Protection Rules

The current Texas Asbestos Health Protection Rules require that an asbestos survey be performed by Department of State Health Services licensed persons prior to the commencement of renovation or demolition activities that could disturb asbestos-containing materials within a public building. Materials such as drywall, drywall texture and joint compound, ceiling texture/acoustical materials, flooring materials, ceiling tiles, as well as vinyl flooring products and adhesives can contain asbestos.

2.3 Lead Based Paint

Pre-renovation education requirements:

Firms that perform renovations for compensation in residential houses, apartments, and child-occupied facilities built before 1978 are required to distribute EPA's lead hazard information pamphlet "Renovate Right" before starting renovation work.

The firm must document compliance with this requirement; EPA's pre-renovation disclosure form may be used for this purpose.

Training, certification, and work practice requirements:

Firms are required to be certified, their employees must be trained in the use of lead-safe work practices (either as a certified renovator or on-the-job by a certified renovator), and lead-safe work practices that minimize occupants' exposure to lead hazards must be followed.

Examples of lead-safe work practices include:

Work-area containment to prevent dust and debris from leaving the work area.

Prohibition of certain work practices like open-flame burning and the use of power tools without HEPA exhaust control.

Thorough clean up followed by a verification procedure to minimize exposure to lead-based paint hazards.

Section 3.0 Containments and PPE

Section 3.1 Containment

Pack-out contents for cleaning. Build a single-stage containment around the affected walls in the bedroom, living room, mechanical closet, and hallway. Establish negative pressure using air scrubbers with CLEAN HEPA-rated filters. **Vent outside through a window to remove organic vapors.**

Place air scrubbers outside the containment to clean up contamination from scattered mold spores.

Maintain 4 air changes per hour.

Utilize dehumidifiers to maintain humidity between 30-50% Rh.

Seal HVAC supply vents and/or return air vents in remediation area(s)

Signs advising that a mold remediation project is in progress shall be displayed at all accessible entrances to remediation areas. The signs shall be at least eight 8 inches by ten 10 inches in size and shall bear the words "NOTICE: Mold Remediation Project In Progress" in black on a yellow background. The text of the signs must be legible from a distance of ten 10 feet.

Section 3.2 Personal Protective Equipment (PPE)

Minimum PPE

FULL PPE REQUIRED

Gloves

Disposable Full Body Clothing

Head Gear

Foot Coverings

Full-Face Respirator with HEPA Filter

The remediation contractor shall insure that OSHA appropriate personal protective equipment (PPE) is worn while remediating all containment areas.

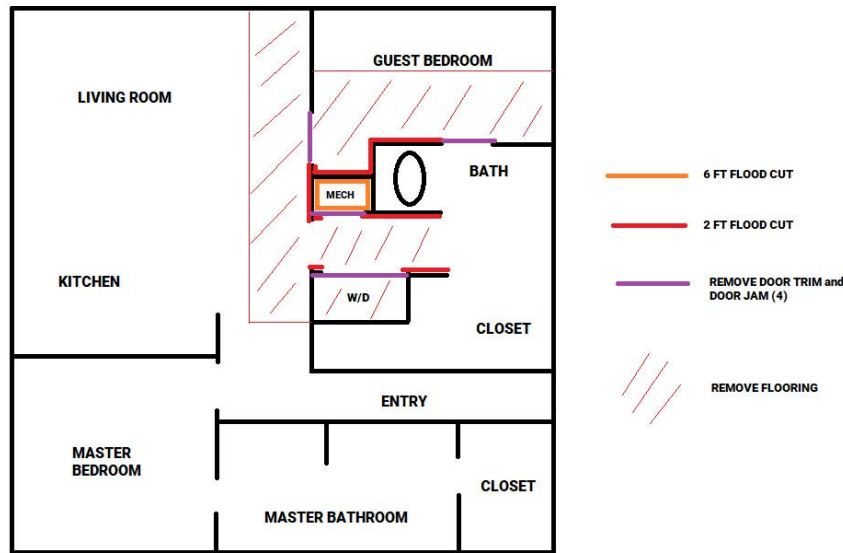
Use professional judgment, consider potential for remediator exposure and size of contaminated area. Contractor assumes all responsibility for PPE compliance.

The EPA Guidelines for Remediation of Building Materials with Mold Growth by Clean Water requirements for PPE should be followed. The complete table is included at the end of this document in U.S. EPA Cleaning Methods, Table 2.

Note: Professional judgment should always play a part in PPE decisions. The EPA guidelines are based on the total surface area contaminated and the potential for remediator and/or occupant exposure, not on the basis of health effects or research showing there is a specific method appropriate at a certain number of square feet. The guidelines have been designed to help construct a remediation plan. The remediation contractor will then use professional judgment and experience to adapt the guidelines to particular situations.

Section 4.0 Specific Remediation Requirements

Section 4.1 Project Diagram



- Follow all Containment Procedures in **Section 3.1**
- Remove door trim and door jams on 4 doors as indicated in PURPLE (W/D, Mechanical, Guest Bedroom, Guest Bathroom)
- Detach HVAC unit and remove platform
- 6 FT flood cut inside mechanical closet as indicated in ORANGE - approx 60 sq ft
- Cut out approx 9 sq ft CEILING in Mechanical Closet
- Remove 16 LF baseboard and 2 ft flood cut walls indicated in RED - approx 68 sq ft
- Remove 6 x 3 laminate flooring and underlayment in hallway
- Remove 3 x 6 laminate flooring and underlayment in W/D area
- Remove approx 11 x 4 section of laminate flooring in living room as indicated
- Remove approx 12 x 4 section of carpet in guest bedroom as indicated
- Follow all Cleaning Procedures in **Section 4.2** on next page

Section 4.0 Specific Remediation Requirements

4.2 Cleaning Procedures

- Follow all Containment Procedures in **Section 3.1**
- **CONTENTS:** Pack-out and clean contents according to **Table 2: EPA Cleanup Methods** at the end of this document. (HEPA vacuum/damp-wipe/steam clean) All washable soft contents (clothing, bedding, etc) should be washed according to manufacturer's instructions.
- **Cleaning Procedures For Demolition:**
 - Remove all insulation and other porous materials in wall cavities and thoroughly HEPA vacuum all dust and debris
 - Clean framing with HEPA vacuum and a grease cutting soap solution or an EPA approved mold cleaning product used according to the manufacturer's instructions. For wood framing, use a sander to remove the top layer of discoloration from the wood and HEPA vacuum all dust.
 - **DO NOT ENCAPSULATE FRAMING WITHOUT APPROVAL FROM THE MAC** -If any framing is not able to be adequately cleaned/sanded to remove mold growth or staining, please text post-cleaning pictures to 972-945-6653.
 - Inspect wall cavities for signs of contamination, hidden water damage and/or mold growth. Semi-porous building materials (framing, studs, joists, sub-floors, etc.) which cannot be adequately cleaned of fungal growth or containing rotten wood should be removed and disposed. If the integrity of any support structure is questionable, it should be replaced. Any materials removed should extend at least 24" past the last signs of water damage or visible mold growth.
 - Dry all wet materials. Wood moisture content should not exceed 15% after cleaning is performed. Air movers and dehumidification equipment should be utilized to dry the structure as needed.
 - HEPA vacuum and damp-wipe all surfaces in the contained area until there is no visible dust or debris
 - Dispose of all mold containing materials in double 6 mil poly and wipe the outside
- **HVAC:** Have a licensed HVAC professional clean the inside of the HVAC unit - coils, blower fans, plenums, etc. Visually inspect supply plenum for visible microbial growth and replace if necessary. Clean HVAC ducting under negative pressure with HEPA filtration. Change all filters and clean registers.
- **ENVIRONMENTAL CLEANING THROUGHOUT ENTIRE UNIT FOLLOWING DEMOLITION:** HEPA vacuum all surfaces. Damp-wipe all horizontal and dust collecting surfaces using a mild detergent solution. HEPA vacuum carpets multiple times in a criss-cross pattern followed by steam cleaning. Dry carpets thoroughly. Place an air scrubber in each bedroom and in the living room/kitchen area.
- *Air wash with fans and allow air scrubbers to run for 48 hours prior to clearance testing*

**The use of EPA registered disinfectants, biocides and antimicrobial coatings may be used; however, if the remediation contractor wishes to use an antimicrobial encapsulant prior to post remediation assessment, the assessment consultant must be contacted for discussion and approval of application areas prior to proceeding. Mold assessment consultant will require visual and/or photo confirmation from the remediation contractor regarding the area(s) in question prior to encapsulation being applied.*

NOTE: The steps outlined here are the minimum steps required for remediation. A remediation contractor may take additional or varied steps as dictated by their judgment and/or operating procedures to adequately abate the mold contamination. However, should significant variance from the above recommendations be required or other issues regarding remediation arise, the remediation contractor should first obtain concurrence from the Mold Assessment Consultant.

Section 5.0

Post Remediation Assessment and Clearance Criteria

Once the remediation has been completed, for the contaminated area(s) to achieve Clearance, a Post Remediation Inspection must be performed along with the collection and analysis of an appropriate number of samples.

Dallas Mold Consultants must be provided with a copy of the Remediation Contractor's Work Plan for the Mold Assessment Consultant to determine whether the remediation has been completed in accordance with this protocol.

Prior to obtaining final clearance the owner/agent must have repaired the underlying cause of the mold, so that it is reasonably certain that the mold will not return from the same cause.

The Mold Assessment Consultant shall perform a visual, procedural, and analytical evaluations in the impacted area(s) to determine whether the remediation has been performed according to the Remediation Protocol provided for this project.

5.1 Visual Inspection

A thorough visual inspection of the containment area(s) or remediation areas will be performed. All areas should be left dry and visibly free of all visible microbial contamination and debris.

Under no circumstances should any encapsulant and primers be applied to any surfaces prior to the Post-Remediation, Inspection and Clearance Testing unless approved by the Mold Assessment Consultant.

Containments must remain in place until Clearance Lab Results.

5.2 Sampling

The sample analysis must reveal no mold growth on any surface sampled and airborne mold counts must be statistically similar to outdoor air for corresponding mold types and total indoor air mold spore concentrations must be generally lower than outdoor mold spore concentrations. IICRC S520 Clearance Standards apply.

1. One air sample from inside each containment or work area where mold was previously detected (one per area).
2. One indoor control air sample from inside the property outside of the containment(s) or work area(s).
3. One to two surface sample(s) per affected area where mold growth was previously observed.
4. At least one outdoor air sample required as a baseline for the Lab.

5.3 Clearance Criteria

The Clearance Investigation and Testing is conducted when mold remediation and cleanup efforts are completed but before containment is removed and renovation activities have begun.

The purpose of the clearance investigation is to ensure that remediation activities have been completed as outlined in the Remediation Protocol, containment has been maintained, all dust and debris have been removed from the containment areas, and no malodors or visible mold is present.

Clearance testing consists of a visual assessment for mold problems in area(s) of remediation activities and the collection/analysis of a tape lift sample and an air quality test in these designated area(s). Clearance is defined as tape and air samples collected indoors being quantitatively equal to or less than outdoor samples, and qualitatively similar. There are no exposure limits for the swab or tape lift sample.

As a general rule acceptable clearance of a containment area is reached when the genus of fungi collected from indoor air are equal to or less than outdoor air. Marker spores such as Chaetomium or Stachybotrys that are measured at more than 2 spores in the air test will result in the area not being cleared. Total average spore counts in the containment area should not exceed 2,000, and a single spore category should not exceed 1,000. In addition, the rank order and type of organism identified may indicate interior contamination and related need for additional action.

If the containment area has dust, debris, breached containment, lack of quality control related to remediation specifications the inspector will not conduct further clearance activities. The client will be informed of observed project deficit concerns for communication with the Mold Remediation Contractor. In addition, if visible mold is present, a tape lift and swab sample is collected for lab analysis.

NOTICE to CLIENT:

Part of the clearance process is ensuring that the source of the problem has been addressed to ensure the problem doesn't reoccur. As the homeowner, you agree to address all sources of water intrusion. Once the restoration/remediation efforts have commenced, you agree and understand that it is NOT SAFE for you to re-enter the contained space until a clearance has been achieved. By doing so you may breach the containment, cross-contaminate the other parts of your home and delay the process. If clearance is not achieved on the first attempt, the contractor will be required to re-clean and let the air scrubbers run for an additional time. After the first clearance test, subsequent clearance inspection costs will be at the restoration contractor's expense, UNLESS it is found that the client has entered and breached the containment area during clearance efforts.

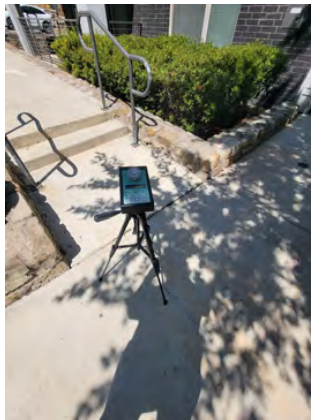
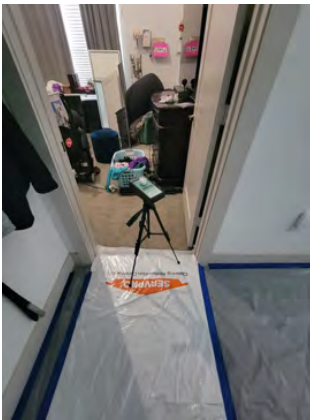
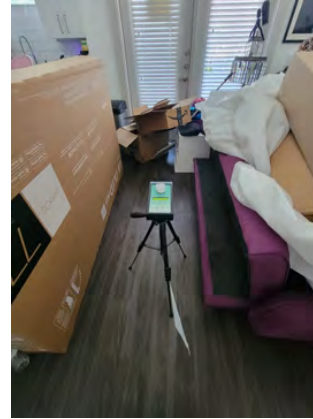
By engaging this project, the contractor also agrees to these terms.

Client's Initials: _____

Section 6.0

6.1 Photographic Documentation

Air Samples - Temperature - Humidity Readings

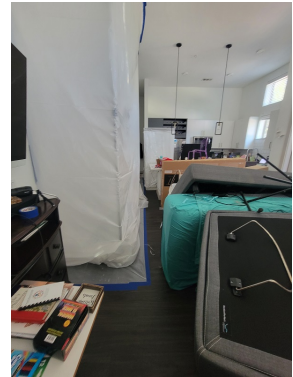


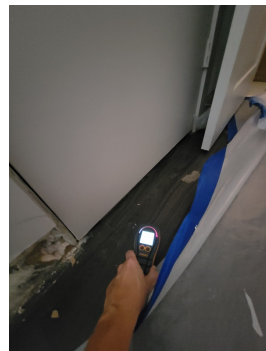
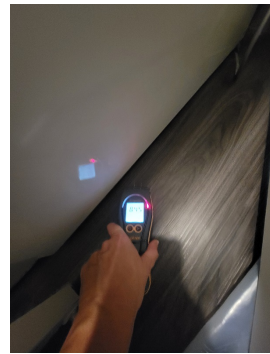
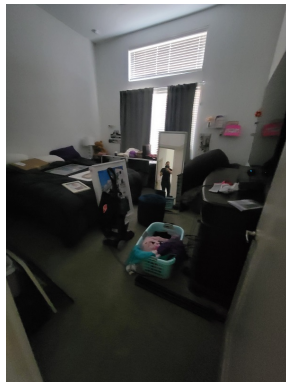
**Guest Bedroom Drywall
Tape Lift Sample**



**Utility Hallway Drywall Tape
Lift Sample**

6.1 Photographic Documentation (Continued)





Section 7.0 Credentials

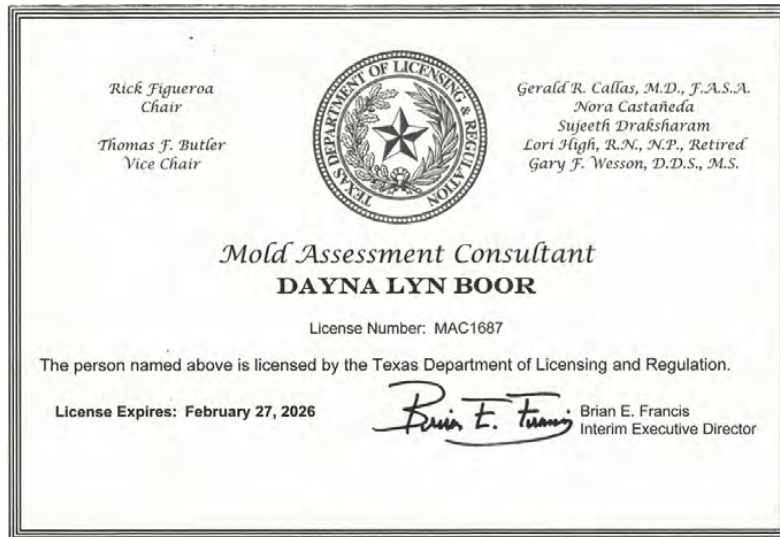


Table 2: Guidelines for Remediating Building Materials with Mold Growth Caused by Clean Water*

Material or Furnishing Affected	Cleanup Methods [†]	Personal Protective Equipment	Containment
SMALL – Total Surface Area Affected Less Than 10 square feet (ft²)			
Books and papers	3	Minimum N-95 respirator, gloves, and goggles	None required
Carpet and backing	1, 3		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3		
Wallboard (Drywall and gypsum board)	3		
Wood surfaces	1, 2, 3		
MEDIUM – Total Surface Area Affected Between 10 and 100 (ft²)			
Books and papers	3	Limited or Full Use professional judgment, consider potential for remediator exposure and size of contaminated area	Limited Use professional judgment, consider potential for remediator/occupant exposure and size of contaminated area
Carpet and backing	1, 3, 4		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3, 4		
Wallboard (Drywall and gypsum board)	3, 4		
Wood surfaces	1, 2, 3		
LARGE – Total Surface Area Affected Greater Than 100 (ft²) or Potential for Increased Occupant or Remediator Exposure During Remediation Estimated to be Significant			
Books and papers	3		Full Use professional judgment, consider potential for remediator/occupant exposure and size of contaminated area
Carpet and backing	1, 3, 4		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3, 4		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3, 4		
Wallboard (Drywall and gypsum board)	3, 4		
Wood surfaces	1, 2, 3, 4		

EPA Cleanup Methods

Use professional judgment to determine prudent levels of Personal Protective Equipment and containment for each situation, particularly as the remediation site size increases and the potential for exposure and health effects arises. Assess the need for increased Personal Protective Equipment, if, during the remediation more extensive contamination is encountered than was expected. These guidelines are for damage caused by clean water. If you know or suspect that the water source is contaminated with sewage, or chemical or biological pollutants, then the Occupational Safety and Health Administration (OSHA) requires PPE and containment. An experienced professional should be consulted if you and/or your remediator do not have expertise in remediating contaminated water situations. Select method most appropriate to situation. Since molds gradually destroy the things they grow on, if mold growth is not addressed promptly, some items may be damaged such that cleaning will not restore their original appearance. If mold growth is heavy and items are valuable or important, you may wish to consult a restoration/water damage/remediation expert. Please note that these are guidelines; other cleaning methods may be preferred by some professionals.

Cleanup Methods

Method 1: Wet vacuum (in the case of porous materials, some mold spores/fragments will remain in the material but will not grow if the materials is completely dried). Steam cleaning may be an alternative for carpets and some upholstered furniture.

Method 2: Damp-wipe surfaces with plain water or with water and detergent solution (except wood-use wood floor cleaner); scrub as needed.

Method 3: High-efficiency particulate air (HEPA) vacuum after the material has been thoroughly dried. Dispose of the contents of the HEPA vacuum in well-sealed plastic bags.

Method 4: Discard - remove water-damaged materials and seal in plastic bags while inside of containment, if present. Dispose of as normal waste. HEPA vacuum area after it is dried.

Personal Protective Equipment (PPE)

Minimum: Gloves, N-95 respirator, goggle/eye protection

Limited: Gloves, N-95 respirator or half-face respirator with HEPA filter, disposable overalls, goggles/eye protection

Full: Gloves, disposable full body clothing, head gear, foot coverings, full-face respirator with HEPA filter

Containment

Limited: Use polyethylene sheeting ceiling to floor around affected area with a slit entry and covering flap; maintain area under negative pressure with HEPA filtered fan unit. Block supply and return air vents within containment area.

Full: Use two layers of fire-retardant polyethylene sheeting with one airlock chamber. Maintain area under negative pressure with HEPA filtered fan exhausted outside of building. Block supply and return air vents within containment area.



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How can I know if someone is licensed?

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Mold assessment is an inspection of a building by a **mold assessment consultant** or **technician** to evaluate whether mold growth is present and to what extent. Samples may be taken to determine the amount and types of mold that are present; however, sampling is not necessary in many cases. When

mold cleanup is necessary a licensed mold assessment consultant can provide you with a **mold remediation protocol**. A protocol must specify the estimated quantities and locations of materials to be remediated, methods to be used and clearance criteria that must be met.

What is meant by “clearance criteria?”

Clearance criteria refer to the level of “cleanliness” that must be achieved by the persons conducting the mold cleanup. It is important to understand and agree with the mold assessment consultant prior to starting the project as to what an acceptable clearance level will be, including what will be acceptable results for any air sampling or surface sampling for mold. There are no national or state standards for a “safe” level of mold. Mold spores are a natural part of the environment and are always present at some level in the air and on surfaces all around us.

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Mold remediation is the cleanup and removal of mold growth from surfaces and/or contents in a building. It also refers to actions taken to prevent mold from growing back. Licensed **mold remediation contractors** must follow a mold remediation protocol as described above and their own **mold remediation work plan** that provides specific instructions and/or standard operating procedures for how the project will be done.

Before a remediation project can be deemed successful, a mold assessment consultant must conduct a **post-remediation assessment**. This is an inspection to ensure that the work area is free from all visible mold and wood rot, the project was completed in compliance with the remediation protocol and remediation work plan, and that it meets all clearance criteria that were specified in the protocol. The assessment consultant must give you a **passed clearance report** documenting the results of this inspection. If the project fails clearance,

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What is a Certificate of Mold Damage Remediation?

No later than the 10th day after a mold remediation project stop date, the remediation contractor must sign and give you a **Certificate of Mold Damage Remediation**. The licensed mold assessment consultant who conducted the post-remediation assessment must also sign the certificate. The consultant must truthfully state on the certificate that the mold contamination identified for the project has been remediated and whether the underlying cause of the mold has been corrected. (That work may involve other types of professional services that are not regulated by the mold rules, such as plumbing or carpentry.) Receiving a certificate documenting that the underlying cause of the mold was remediated is an advantage for a homeowner. It prevents an insurer from making an underwriting decision on the residential property based on previous mold damage or previous claims for mold damage. If you sell your property, the law requires that you provide the buyer a copy of all certificates you have received for that property within the preceding five years.

How is a property owner protected if a mold assessor or remediator does a poor job or damages the property?

The rules require licensees to have commercial general liability insurance in the amount of at least \$1 million, or to be self-insured, to cover any damage to your property. Before hiring anyone, you should ask for proof of such insurance coverage. You may wish to inquire if the company carries additional insurance, such as professional liability/errors and omissions (for consultants) or pollution insurance (for contractors), that would provide additional recourse to you should the company fail to perform properly.

How is my confidentiality protected if I share personal information about myself with a company?

Under the code of ethics in the rules, to the extent required by law, licensees must keep confidential any personal information about a client (including medical conditions) obtained during the course of a mold-related activity. Further, you may be able to negotiate a contract to include language that other personal information be kept confidential unless disclosure "is required by law." However, licensees are required to identify dates and addresses of projects and other details that can become public information.

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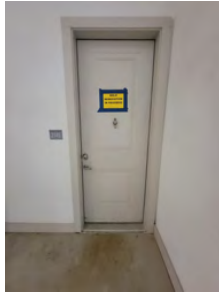
Phone: 512-463-6599 or 800-803-9202

www.tdlr.texas.gov

Re-inspection Report

Project No: Weinstein-090425

Inspection Date: 10/17/2025



**220 E Broadway Ave #2145
Ft. Worth, TX 76104**

Prepared By:

Dallas Mold Consultants
8080 N Central Expressway, Suite 1700
Dallas, TX 75206
972-945-MOLD (6653)
office@dallasmoldconsultants.com

Prepared For:

Weinstein Properties
Pamela Quinn
804.283.4708
pquinn@weinsteinproperties.com

NOTES: Mold testing was requested on an additional area of suspicion by the front door. The paint in the area does have an odd appearance and there is a dark substance that is suspected to be mold.

The drywall does not have elevated moisture readings.

A swab sample was collected from the area which revealed normal fungal ecology. To further rule out water damage and mold growth inside the wall cavity, exploratory measures such as removal of baseboard/door trim and removal of the drywall could be taken.

See pictures and lab snapshot on next page.

Full lab report sent as a separate attachment.

Written By:

A handwritten signature in black ink, appearing to read "Dayna Boor".

Dayna Boor

Licensed Mold Assessment Consultant - TDLR # MAC1687, Exp. 02/27/2026

Licensed Mold Remediation Contractor - TDLR # MRC1602, Exp. 04/02/2027

DLB

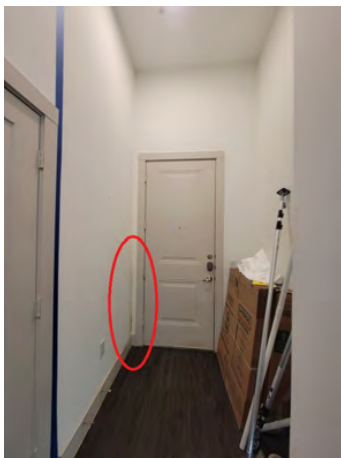
Lab Results

Sample No:	101725-01	Analysis Date:	10/18/2025	Sample Type:	Swab
Location:	Entry Drywall				
Identification		Rating			
Alternaria		Minor			
Ascospores, non-specified		Minor			
Bipolaris/Dreschlera/Helminthosporium/Exserohilum		Minor			
Curvularia		Minor			
Myxomycetes/Periconia/Smut/Rust		Minor			
Nigrospora		Minor			
Non-specified spore		Minor			
Pithomyces		Minor			
Hyphal Fragments		Minor			



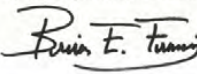
A surface swab sample collected from this area identified minor concentrations of Alternaria, Ascospores, Bipolaris, Curvularia, Myxomycetes, Nigrospora, and Pithomyces.

These minor concentrations are not indicative of mold growth on the drywall but rather normal fungal ecology on a surface.



DB

Credentials

<i>Rick Figueroa</i> Chair		<i>Gerald R. Callas, M.D., F.A.S.A.</i> <i>Nora Castañeda</i> <i>Sujeeth Draksharam</i> <i>Lori High, R.N., N.P., Retired</i> <i>Gary F. Wesson, D.D.S., M.S.</i>
<i>Thomas F. Butler</i> Vice Chair		
<i>Mold Assessment Consultant</i> DAYNA LYN BOOR		
License Number: MAC1687		
The person named above is licensed by the Texas Department of Licensing and Regulation.		
License Expires: February 27, 2026		Brian E. Francis Interim Executive Director

<i>Rick Figueroa</i> Chair		<i>Gerald R. Callas, M.D., F.A.S.A.</i> <i>Nora Castañeda</i> <i>Sujeeth Draksharam</i> <i>Lori High, R.N., N.P., Retired</i> <i>Gary F. Wesson, D.D.S., M.S.</i>
<i>Thomas F. Butler</i> Vice Chair		
<i>Mold Remediation Contractor</i> DAYNA LYN BOOR		
License Number: MRC1602		
The person named above is licensed by the Texas Department of Licensing and Regulation.		
License Expires: April 02, 2027		Courtney Arbour Executive Director



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PROJECT INFORMATION
Weinstein - 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Direct Exam Chain of Custody

Test Code 3: Direct Exam -Fungal limited
Analysis Method: Internal SOP M-3

DALLAS MOLD CONSULTANTS
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

Company name		Dallas Mold Consultants		State		TX	ZIP	75206
Address		8080 N. Central Expy Ste 1700		City		Dallas		
Project name		Weinstein - 090425		State		TX	ZIP	75206
Project address		220 E Broadway Ave # 2145, Ft Worth TX		State		TX	ZIP	76104
Project (if optional)		Turnaround time		Email address:		dayna@dallasmoldconsultants.com		
Sample Date		09/04/2025		3HR		6HR	24HR	48HR
				0		0	0	0
				CC:		CC:		

Test Codes				MOLD				ASBESTOS							
Air Samples				Surface Samples				7 FLM							
1. Spot Tape mold only				3. Tape Swab/mold mold only, airbag				5. Tape Swab/mold mold only, airbag				7. FLM			
2. Spot Tape mold & other particles				4. Tape Swab/mold, mold & other particles - airbag				6. Tape Swab/mold, mold & other particles - airbag				8. FLM mold Count			
Sample # or ID	Sample Name, Location or Description	Temp	R.H. %	Test code	Time on (minutes only)	Time off (minutes only)	Total Vol (minutes only)	Sample Type	No. of Containers						
1.	090425-01 Guest Bedroom Tape Lift	76	63	3				Tape	1						
2.	090425-02 HVAC Closet Drapery Tape Lift	76	63	3				Tape	1						
3.	00010444 HVAC Closet Hallway	76	63	1	11:34am	11:44am	7SL	air	1						
4.	00010785 Guest Bedroom	76	63	1	11:45am	11:50am	7SL	air	1						
5.	00010449 Living Room	76	63	1	11:52am	11:57am	7SL	air	1						
6.	00010701 Master Bedroom	76	63	1	11:58am	12:03pm	7SL	air	1						
7.	00010650 Outside Backline	92	43	1	12:05pm	12:10pm	7SL	air	1						
8.															
9.															
10.															

Payment options		Released by (your signature)		Received Date Stamp:	
☐ Invoice to account				SEP 04 2025	
☒ Process credit card on file		Date: 09/04/25			
☐ Enclosed check					

Field Notes:		Tracking #:	

Lab Job #		25-111919		25-111920	
Rev. 7 Issue Date: 3/24/2023		2501 Mayes Road, Ste # 110 Carrollton, TX 75006 info@moldlab.com 1-800-416-6553		Page ___ of ___	

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation, ALHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:



Kristina Rucker, Lab Director



moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6553
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein - 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Report
Test Code 3: Direct Exam -Fungal limited
Analysis Method: Internal SOP M-3


**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Sample No:	090425-01	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	Guest Bedroom Tape Lift				

Identification	Rating
Aspergillus/Penicillium-like	Minor
Chaetomium	Heavy
Cladosporium	Minor
Hyphal Fragments	Heavy

Sample No:	090425-02	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	HVAC Closet Drywall Tape Lift				

Identification	Rating
Chaetomium	Heavy
Hyphal Fragments	Heavy

Tech Notes:

Submitted By: Dayna Boor | w/ Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111820 | Technician: Steven Reese

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PROJECT INFORMATION
Weinstein - 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Direct Exam FAQ
Test Code 3: Direct Exam -Fungal limited
Analysis Method: Internal SOP M-3


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CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

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What does the rating system mean?

Mold is a normal part of our environment, and mold spores can settle out of the air into accumulated dust. This can cause 'minor' ratings of several different types of mold to appear even in a typical house dust sample, and these may not necessarily be a cause for concern. However, a 'heavy' rating may indicate that the sample was taken from a source of mold. Below are the exact criteria for each rating:

- 'No mold detected' means that the sample submitted did **not** contain a detectable level of mold.
- 'Minor' means that the technician observed 1 or fewer structures of mold per field of view under the microscope.
- 'Moderate' means 1 to 3 structures of mold were detected per field of view.
- 'Heavy' means greater than 3 structures were detected per field of view.

Always take into consideration the sample as a whole when interpreting results. It is important to also consider the types of mold detected and the location the sample was taken.

How do I learn more about the types of mold listed on my report?

Each report comes with its own mold dictionary, called the Glossary. Simply scroll to the Glossary section of your report and each mold type is listed alphabetically. There you'll find helpful information about each mold type.

Do I have the Black Mold?

Usually when a customer asks this question he/she is referring to *Stachybotrys*. Although *Stachybotrys* is black in color, so are many other types of mold. Do not discount the importance of other types of mold listed on your report simply because you do not see the word *Stachybotrys* or Black mold. For more about 'black mold', visit our website at: <https://www.moldlab.com/black-mold>

How do I get rid of it?

Many molds are allergens and some may be toxigenic. Disturbing the mold with cleaning methods increases the chances of exposure to the particulate. Mold clean up and disposal methods vary greatly from company to company. A good rule of thumb is that if the contaminated area is small and the material is non porous, such as metal, it can be cleaned by traditional methods, taking care to use personal protective equipment. Porous materials on the other hand, such as wood, textiles, or sheetrock, are difficult to clean because of the microscopic holes in the material. The 'root-like' structures of the mold called hyphae/mycelia can grow down into the holes and make it hard to clean effectively. The surface will appear clean but as soon as conditions are favorable the mold can start to grow again. Here is a link to the EPA mold help guide: <https://www.epa.gov/mold/brief-guide-mold-moisture-and-your-home>

Can we still live here?

There are no established 'safe' levels of mold, just as there are no established 'unsafe' levels of mold, and individuals have different resistances and reactions to mold. Persons that are most likely to be adversely affected by mold exposure are: children, elderly, immunocompromised, and persons with respiratory disorders. If you suspect you are experiencing adverse health effects as a result of mold, please consult a medical professional. Please note that Moldlab, Ltd. is not a medical, or clinical laboratory and we do not offer medical consulting or advice.

Tech Notes:

Submitted By: Dayna Boor | var: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

Results apply only to samples tested. Results may not be reported or reproduced except in full without written approval of Moldlab. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.

LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.


2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6553
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein - 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Direct Exam Glossary

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus.

The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

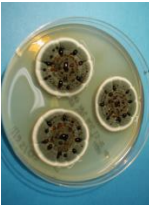
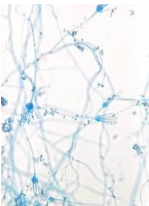
Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition

Aspergillus/Penicillium-like (as-per-jill-us) / (pen-uh-sill-ee-um)
Classification: Allergen / Contaminant / Opportunistic Pathogen

Possible Health Effect: Aspergillus is common on tape lift samples and air samples, but its spores are indistinguishable from Penicillium spores in most cases. There are a few exceptions but the species ID must be made from culture, and is still a difficult job. Health effects vary by species, but many are listed as allergens. Some species can produce toxins that may have significant health effects in humans. Aspergillus is listed as one of the most infectious types of mold, but infections are not common in normal healthy immune systems. However, if you are immune suppressed or compromised this should be discussed with your physician.



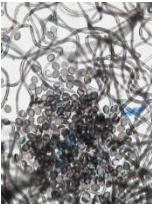
Macroscopic Morphology: Aspergillus can appear in a wide range of colors from white to purple, yellow to green, see images next to text.

Environment: Commonly found in the environment around the world.

Images

Tech Notes:

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Definition		Images	
Chaetomium (kay- toe-me-un) Classification: Contaminant / some report allergen Possible Health Effect: Rarely involved in systemic and cutaneous disease and sometimes reported to be allergenic. Some species can produce toxins, and there is some research interest on whether these toxins can cause cancer. Macroscopic Morphology: The surface of the mold is cottony, spreading and becomes tan or gray with age. With close examination the surface sometimes will appear to have little black specks like pepper. Environment: Chaetomium is one of the few Ascomycetes that will grow and produce spores indoors. It prefers to grow on cellulose for example paper and wood. Primary IAQ importance is that it will grow in the same conditions as Stachybotrys (wet cellulose) and sheetrock paper. Colonies of Chaetomium and Stachybotrys will be growing on top of one another. Also, found in soil and hay.			
Cladosporium (clad-oh-spore-ee-un) Classification: Common Allergen/ Contaminant Possible Health Effect: Rarely pathogenic, it is a common agent of hay fever and asthma and other allergy related symptoms. Macroscopic Morphology: Surface of the mold is greenish brown or can appear black in color with age and have heap or folded appearance. Environment: Cladosporium can be found in most air samples most of the time. It is very common. Cladosporium is one of the types of mold found growing on HVAC vent covers and grills. It can grow on leaves, textiles, wood, paper, and decaying vegetation.			
Hyphal Fragments (hy-full) Classification: N/A Possible Health Effect: N/A Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone. Environment: N/A			

Tech Notes:

Submitted By: Dayna Boor | w/ Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111820 | Technician: Steven Reese

Results apply only to samples tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.
LAB0137 by the Texas Dept. of Licensing and Regulation, AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.

Exhibit 6



141-370402-25

Writer's Direct Dial
(469) 665-9104
gzavarelli@wandzlaw.com

December 1, 2025

Via E Serve

Ms. Kathryn (Katie) Copeland

RE: Weinstein, et al v. Kathryn Copeland

Dear Ms. Copeland:

I am writing regarding various matters.

First:

You have not responded to my November 21 correspondence regarding the personal property items stored in the 4th floor storage room at the apartment complex- and whether you would like these moved to Reign. Please respond. If you are not agreeable to having them moved to Reign, please remove the items yourself (your lease expired October 26, 2025).

Next:

As previously noted in my November 21 correspondence -Please remove the personal property items you stored in the original storage room, associated with the apartment 2145 (your lease expired on October 26, 2025).

Next:

As noted in my November 21 correspondence - We repeatedly asked you about the balcony items -and while you still had a valid lease, we requested you to indicate if you would like the Weinstein maintenance staff to move those items from the balcony to the original storage room for your apartment. You never responded. These items need to be removed from the balcony. Your lease expired on October 26, 2025.

Next:

As noted in my November 21 correspondence - You were requested to return the access devices for your apartment, to include the keys, key fob and gate access devices. It is my understanding those have not yet been returned. Please return those items (understanding that all your personal property items need to be removed from the property (see the first three items above).

Next:

As noted and requested in my November 21 correspondence -You have signed pleadings providing the apartment as your address; this is disingenuous – though you have refused to leave the apartment in totality -keeping significant amounts of personal property in the storage rooms and on the balcony, and failing to return keys/access devices – well after your lease has expired- it is assumed you are not physically residing in the apartment; Ms. Sortor has repeatedly requested for you to provide your physical address- and you have ignored those requests entirely. Please provide your physical address.

Next:

As noted in my November 21 correspondence

Your disclosures are incomplete.

You have not provided complete contact information for Mr. Quiram. Please do so.

You have not identified the multiple/numerous medical providers who have purportedly been involved in your care, based on the most recent Amended Answer/Amended Counter Claims asserted. Please identify those persons, with complete address and phone numbers and the requiring identifying information -and when you do so -do not omit the following: the physicians referenced in your “reproductive harm” claim, occupational therapists, physical therapists and home healthcare providers referenced in your pleadings, physicians involved in any diagnosed “brain trauma”, physicians/medical professionals involved in any diagnosed gastrointestinal issues/weight loss issues, physicians/medical professionals involved in the alleged chronic fatigue, physicians/medical professionals involved in any diagnosed respiratory conditions, physicians/medical providers who have diagnosed and/or treated you for: dermatologic symptoms, hand tremors/weaknesses and balance impairment, chronic migraines, autoimmune instability, all medical professionals/providers who were involved in ordering, interpreting and/or diagnosing and providing care to you based upon MRI findings, ultrasounds, blood panels and genetic and allergen sensitivity testing, all physicians/medical providers (to include psychologists, therapists) for referenced PTSD, all physicians/medical providers who have been involved in diagnosing and/or treating the following conditions: Ehlers-Danlos Syndrome (EDS), Postural Orthostatic Tachycardia Syndrome (POTS), and Mast Cell Activation Syndrome (MCAS) and all physicians/medical providers who have diagnosed and/or treated you for or have indicated delayed affects from mold exposure – to include as related to neurological, respiratory, hepatic, renal and immunological conditions/harm. Please update/supplement your disclosures to provide all of this information.

Additionally, please identify all hotels you have stayed at for the last 8 months (given your plead claim of 8 months of hotel to hotel instability).

Please identify every person – professional and lay persons – involved in any matter involving your “children’s displacement” (you have opened the door on all matters involving the custody of your children and the orders entered which prohibit you to have unsupervised contact with them). This includes but is not limited to your ex husband and your mother. However, all other persons who have knowledge of your children being “displaced” and/or of the facts surrounding the restrictions placed upon you in terms of visits/contact, should be identified.

Please identify all individuals who have knowledge of the manner in which the alleged incidents (as alleged in your counter claims) have impacted your legal career (ie “derailed” your “legal career trajectory” – as you have alleged). Though I find that claim to be completely lacking in merit, given what happened with/to your law license and why – because you again, have opened the door on this - we need to be provided identifying information for any persons who would have knowledge of this- the manner in which your legal career has been impacted as well as those individuals who were involved in the matters that led to your law license suspension.

Please identify every person who has been in your apartment- with your authorization -and who is not a maintenance nor management staff with Weinstein, since June 1, 2025. You seem to believe this is relevant – as to Weinstein employees and/or contractors/vendors – therefore, your disclosures should reflect every person you invited into and who came into - the apartment during this same time frame.

You have not identified any professional who has indicated you have a disability- as that term is used for the ADA and/or FHA. Please identify those persons, if they exist.

You have not identified the gentleman who you connected with through Bumble and who allegedly assaulted you on September 10, 2025. Given your allegations related to this event and your mental anguish claims, whoever this person was – is a person with knowledge of relevant facts, who I will need to depose.

You have not provided any medical records or billing records with the disclosures. Please produce all responsive items now.

You have not produced the audio recordings you made of Kodi Jackson and/or others who worked for Weinstein management and maintenance, though you repeatedly referenced (in your pleadings) various comments purportedly made by those individuals. These are witness statements and need to be produced. Similarly, if you have audio recorded conversations or video of conversation/statements made by third parties pertaining to any matter relevant to either Weinstein’s claims, your defensive positions and/or your counter claims -those would also be considered witness statements. Please produce all responsive items now.

Because you have not supplemented as requested above, the appropriate Motion has been filed with the Court; however, to the extent these matters are supplemented, there will be no need for a hearing on same.

Next:

As noted in my November 21 correspondence -You have referenced the *White* case in various forums and in pleadings, as some sort of “pattern” evidence. You should know- the *White* case was not settled/resolved; instead the Weinstein entities received a Dismissal with Prejudice in that federal court case, and this occurred before your most recently filed Amended Answer/Counter Claims where you state that the case is still pending – please correct this.

Next:

As noted in my November 21 correspondence - You continue to largely only respond to those matters that you believe benefit you, and repeatedly fail to respond to requests that Ms. Sortor and I have made. Again, as previously requested- please provide us the same courtesy of response.

Also as noted in my November 21 correspondence: You also, at times, make the same request for information from us, as has previously been made and to which we have responded/answered. In the past, we have given repeated responses; we will not continue to do that (most recently you did that with the request for excess/umbrella insurance- and Ms. Sortor graciously responded (again) to that request on Wednesday afternoon, advising you would hear back (again) on Monday. This morning she promptly emailed you that information -informing you again that there is no applicable umbrella/excess. You also filed a Motion to Compel on this issue (after Ms. Sortor’s Wednesday email making clear Weinstein’s position) and the Motion you filed inaccurately stated Weinstein’s position as to that issue; now that you have been told twice that there is no applicable umbrella/excess policy – please withdraw the Motion; alternatively, if you proceed to set this for hearing, a Response will be prepared and we will seek applicable/appropriate relief from the Court.

You have also failed (repeatedly) to respond to our request for depositions of fact witnesses and have not responded to the request to review the proposed scheduling order and sign/return or provide suggested revisions that can be considered. Therefore, the appropriate and necessary Motions have been filed on these matters.

Next:

I appreciate your response as to the additional time I have requested for your deposition; I will seek court intervention as to same.

December 1, 2025

Page 5

Next:

Ms. Sortor and I will not be providing you dates for our depositions; the request is improper, harrasive and an abuse of the discovery. Should you proceed with filing a Motion to Compel which will necessitate a Response to be filed, or if you unilaterally notice these depositions, necessitating a Motion to Quash being filed, we will seek all appropriate relief from the Court.

Next:

As I noted in my November 21 correspondence: You continue to disregard the procedural rules. Please abide by the rules, procedurally and substantively (to include as related to your Certificates of Conference).

Next:

Please provide January and/or February 2026 that you are available for the following depositions:

- Dr. Alfred Johnson;
- Dr. Nilesh Nangrani
- Dr. Michael Conte
- Dr. Kim Tran; and
- Dr. Isabel Huang

I appreciate your attention to these matters and look forward to receiving the information requested herein.

Sincerely,



Glynis L. Zavarelli

Subject: Copeland/Weinstein
Date: Friday, August 22, 2025 at 7:16:13 PM Central Daylight Time
From: Glynis Zavarelli
To: k.m.copeland@tcu.edu, john@jadouglaslaw.com
CC: Michelle Sortor

Ms. Copeland and Mr. Douglas:

As Ms. Copeland is aware, my client has agreed to pay for Ms. Copeland's stay tonight through Sunday night (August 22-24, checking out on Monday August 25) at The Bowie House (Mr. Douglas- this was the one hotel Ms. Copeland identified earlier this evening, while on the phone with me). The price point for this hotel is quite a bit higher than that of the Nobleman (which was charging less than \$300 per night).

Ms. Copeland you will need to locate different lodging for Monday forward – and at a price point of \$300.00 (or less); as such, as I had indicated early this morning (my 6 am email) – you will need to obtain alternative option(s) to present to me for my client to approve payment (as to the nightly room rate, not incidentals). **I will look to receive this information by 9:00 am on Monday so that there is time to get the arrangements made before check out on Monday.** I will not be working this weekend but if you leave me an email over the weekend – I will check that as soon as I return to the office (and this will be before 8:00 am on Monday) and contact my client right away to seek/obtain the necessary approval.

My client has made clear to me that it will not continue to pay for The Bowie House past the Sunday night stay – therefore, it is imperative that other lodging is located, for a stay that starts Monday night (and that the process I have identified is followed -to include as to the time by which this needs to be accomplished). I will not be available at all after the Noon hour on Monday – and I am out all day Tuesday.

Mr. Douglas please provide whatever assistance you are available and able to provide to Ms. Copeland, with this process – to the extent necessary.

Thank you -

Glynis L. Zavarelli
Wentz & Zavarelli, LLP
3120 Sabre Drive, Suite 170
Southlake, Texas 76092
(469) 665-9100
Cell: (817) 832-3689

Subject: ADA/FHA Accommodation Request for Kathryn Copeland, Apt. #2145
Date: Thursday, August 14, 2025 at 7:19:29 PM Central Daylight Time
From: Copeland, Katie
To: The Bowery - Kodi Walker, Angela Hazelwood, Matthew Shaia, Pamela Quinn
CC: Amye.Brochstein@phly.com

Dear Weinstein Properties,

As a disabled tenant at The Bowery at Southside (405 Crawford St., Apt. #2145, Fort Worth, TX 76104) with [REDACTED] I request the following reasonable accommodations under the ADA (42 U.S.C. § 12132) and FHA (42 U.S.C. § 3604(f)), supported by BioTex (June 18, 2025), [REDACTED]. Weinstein's pattern of ignoring mold, as seen in BBB complaints and the Megan White case currently pending in federal court underscores the urgency:

1. **Extend Hotel:** My current reservation ends tomorrow, though your insurer advised the 18th - assuming the remediation would be done by then. I have yet to even see approval from TDLR of the remediation plan, so it seems a longer extension will be necessary.
2. **Relocation to ADA-Compliant Lodging of My Choosing** – Relocate me to an ADA-compliant hotel or Airbnb *I select* that has a bathtub, adjustable bed, kitchen, and in-unit laundry. This is necessary to ensure safety given my complex disabilities and environmental sensitivities. Ideally, secure 1–2 years of prepaid rent in a permanent, mold-free location I can move into soon to ensure stability during recovery.
3. **Licensed Remediation:** Produce a plan approved by TDLR for mold remediation by a TDLR-licensed provider (Tex. Occ. Code § 1958.101) for the three types of toxic mold in my unit.
4. **Service Animal Boarding:** Provide mold-free, accessible boarding for my two service animals at Doggie Digs until I am relocated to a place with a yard.
5. **Housing Stability:** Guarantee no lease termination or eviction (e.g., August 6 Notice, which is considered another act of retaliation under the law) until remediation and relocation are complete.
6. **Interactive Process:** Engage in a documented interactive process within 48 hours.

Failure to comply or retaliation will be reported to HUD (903, June 30, 2025), DOJ (#631436-JLQ), TDLR, the Fort Worth Human Relations Commission and Mayor's Committee on Persons with Disabilities whom I presented to this morning at their meeting. There is clearly an ongoing pattern of harmful and illegal conduct on Weinstein's part.

Required Clarifications

- Has the remediation plan been approved by the licensed assessor and/or TDLR?

What is the full scope and timeline?

- Will you proceed with eviction while refusing relocation assistance?
- Do you claim rent is owed for a unit lawfully deemed unsafe?
- Which claims are you acknowledging or denying coverage for? Please identify any limits on the insurer's role so I can contact other responsible parties.

Spoliation Notice

You must also preserve, from today onward, any new or additional documents, communications, or electronically stored information (ESI) that relate to:

- Complaints, inspection requests, and relocation discussions regarding Unit #2145
- Remediation planning or execution
- Hotel extensions and billing or communications to that effect
- Regulatory communications with City of Fort Worth Code Compliance, TDLR, HUD, DOJ, and any other housing/disability enforcement agencies
- Internal risk assessments or directives referencing mold, eviction, or disability accommodations
- All communications, protocols, reports, and lab results from BioTex, EMSL Analytical, or other contractors including future testing
- Any additional communications, records, and documentation pertaining to the Megan White case
- **All communications, reports, notices, or complaints** between any representative of Weinstein Properties (including Bowery at Southside management, legal counsel, or insurance agents) and any **local, state, or federal agency** regarding:
 - Code enforcement or habitability concerns
 - Tenant health/safety complaints
 - Requests for remediation or inspection
 - Disability accommodations or ADA/FHA concerns
 - Legal inquiries or complaints involving Katie Copeland or other residents
- This includes, but is not limited to, communications with:
 - **City of Fort Worth Code Compliance,**
 - **Texas Department of Licensing & Regulation (TDLR),**
 - **U.S. Department of Housing and Urban Development (HUD),**

- **U.S. Department of Justice (DOJ),**
- **and any city, county, state, or federal agency involved in tenant rights, housing, or disability enforcement.**
- Internal risk assessments or directives referencing mold, eviction, or disability accommodation
- Emails, texts, voicemails, and other ESI involving the above issues
- Photos, videos, testing data, service tickets, contractor logs, invoices
- Internal messaging regarding this incident
- Any public statements, media contacts, or communications made to the press or others regarding this incident or related matters.
- **No remediation or disturbance of mold may occur before independent documentation is complete.** Any violation will be treated as intentional spoliation with all remedies pursued, including sanctions and adverse inference instructions.
- This spoliation notice includes all **past, present, and future** communications and records. Any failure to preserve these materials, especially in light of pending litigation, may constitute evidence tampering and expose all responsible parties to sanctions, adverse inference instructions, and additional liability under Texas law and applicable federal rules.

Punitive Damages and Pattern of Misconduct

I am aware of the pending litigation involving Megan White and have reason to believe the facts of my case—combined with Weinstein Properties’ continued failure to act in good faith—substantially increase your exposure to punitive damages. Any retaliation, including misinformation, delay, or coercive tactics (e.g., inconsistent hotel arrangements or pressure to re-enter the unit) only compounds your liability. This confirms that you had **prior notice of dangerous conditions** and your failure to prevent further harm may rise to the level of gross negligence. I expect full preservation of all communications and evidence related to that case as well.

DTPA 60-day window to reach settlement before exposure to treble damages closes soon (August 26, 2025)

On June 27, 2025, I issued formal notice of my claims under the Texas Deceptive Trade Practices Act (DTPA), supported by the BioTex inspection declaring my unit unfit for human occupancy and documented evidence of mold contamination, disability impacts, and violations of the Texas Property Code and ADA/Fair Housing Act.

Since that notice, I have made repeated requests for:

- Relocation to ADA-compliant, mold-free housing.
- A licensed mold remediation plan as required by Texas law.
- Protection of my belongings during remediation.
- Reimbursement for rent paid for uninhabitable conditions, as well as medical, relocation, and other expenses caused by displacement and mold exposure.

You have not provided the required remediation protocol, relocation accommodations, or financial relief, despite full knowledge of my disability status and the serious health risks. This inaction compounds your liability under the DTPA, ADA, and FHA.

The DTPA provides a 60-day window to reach settlement before exposure to treble damages. That clock is running, and this letter serves as a reminder that each day without resolution increases your legal and financial risk.

Resolution

I remain open to early resolution, including reimbursement for paid rent, relocation, storage, and treatment expenses, in order to avoid further escalation.

Please confirm receipt of this email and advise whether you intend to comply with the above requests.

Sincerely,

Katie Copeland

(817) 789-8498

K.M.Copeland@tcu.edu



NOTICE: 7-Day Statutory Period Expired - Mycotoxin Test Results & Relocation Request

From Copeland, Katie <K.M.COPELAND@tcu.edu>

Date Fri 7/4/2025 11:38 AM

To Kodi Walker The Bowery <kowalker@weinsteinproperties.com>; LBenaicha@weinsteinproperties.com <LBenaicha@weinsteinproperties.com>; ksmith@weinsteinproperties.com <ksmith@weinsteinproperties.com>; j.lancaster@weinsteinproperties.com <j.lancaster@weinsteinproperties.com>; i.jecklin@weinsteinproperties.com <i.jecklin@weinsteinproperties.com>; j.price@weinsteinproperties.com <j.price@weinsteinproperties.com>

Bcc david.ferrislaw@gmail.com <david.ferrislaw@gmail.com>

Dear Weinstein Properties Team,

My health has significantly deteriorated in the past week, creating an urgent medical situation that requires immediate action. I need your help to get out of this unsafe environment immediately.

I have copied several members of the Weinstein Properties team because I am hopeful that if the right people know about this situation, they will see that my urgent request for a hotel room and dog boarding is reasonable and necessary to protect my health while we figure out next steps. **I do not want to go another weekend in an apartment that has been deemed unfit for human occupancy.**

I previously spoke with Jessica from Weinstein Properties and she was scheduled to call me yesterday with relocation options, but I did not receive any communication. I do not have her email address so please pass this along.

I must inform you that:

1. Seven days have now passed since my initial written notice on June 27, 2025. Under Texas Property Code §92.056, this exceeds the "reasonable time" presumption for addressing conditions materially affecting health and safety.
2. Laboratory testing has now confirmed dangerous levels of multiple mycotoxins in both my system and my service animals'. These test results provide objective biological evidence of the serious health hazard present in unit #2145. The specific mycotoxins found in our tests directly correlate with the exact mold species identified in the BioTex assessment report, creating clear evidence of causation.
3. My treating healthcare providers have advised that continued exposure could result in permanent medical harm, making immediate relocation an absolute

medical necessity.

My priority remains securing safe temporary housing. I am requesting immediate approval for:

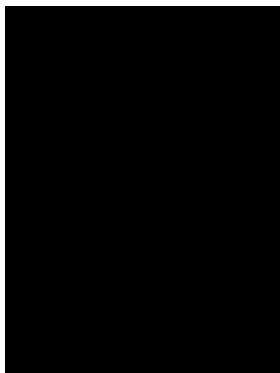
1. Temporary housing at The Nobleman Hotel (availability confirmed)
2. Boarding for my service animals at Doggie Diggs (\$85/night)

Given the missed call yesterday and my deteriorating condition, **I am requesting confirmation of these arrangements by 3:00 PM today.** If I do not receive confirmation by that time, I will need to exercise my statutory remedies under Texas Property Code §92.056, amend my existing HUD and TDLR complaints with my medical test results, and seek emergency injunctive relief.

I remain willing to work cooperatively toward a resolution that addresses my urgent medical needs while allowing proper licensed remediation to proceed. I believe it is necessary to involve your insurance carrier at this time to make sure this matter is handled appropriately and to arrange relocation for me to mitigate further damage to my health. **I just want a safe place to stay while we figure this out.**

There are multiple options to consider for getting me to a safe location, such as refunding the rent I have paid while living here. I am sure we can think of a reasonable temporary solution if we can communicate directly.

Sincerely,
Katie Copeland
817-789-8498



From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Date: Wednesday, July 2, 2025 at 3:15 PM
To: Kodi Walker The Bowery <kowalker@weinsteinproperties.com>, LBenaicha@weinsteinproperties.com <LBenaicha@weinsteinproperties.com>
Subject: Re: ADA/FHA Accommodation Request and Notice of Urgent Health Risk – Unit #2145

Can I please get a response from somebody at Weinstein properties regarding my immediate relocation?

Between my exacerbated symptoms and the roaches, I really need to get to a safe location.

Katie Copeland
817-789-8498

On Jun 30, 2025, at 8:50 PM, Copeland, Katie <K.M.COPELAND@tcu.edu> wrote:

Dear Ms. Walker and Legal Counsel:

This message serves as formal notice that I have filed complaints with the following agencies regarding Weinstein Properties' ongoing violations of Texas and federal law:

1. **Texas Department of Licensing and Regulation (TDLR)** – Complaint #0000018107 for unlicensed mold assessment and remediation in violation of *Texas Occupations Code § 1958.101*
2. **U.S. Department of Housing and Urban Development (HUD)** – Complaint for denial of reasonable accommodation under the *Fair Housing Act* and *Americans with Disabilities Act (ADA)*

Your team's attempt to perform in-house assessment and remediation on a unit declared "**unfit for human occupancy**" by licensed Mold Assessor Kyle Reist (License #MAC1742), with mold-affected areas exceeding 25 contiguous square feet, is unlawful under Texas law.

"A person may not engage in mold assessment or mold remediation unless licensed to do so." – *Tex. Occ. Code § 1958.101(a)*

To be clear, my prior consent to entry on June 27, 2025, was **limited to visual observation only**. At no point did I authorize an assessment, demolition, unlicensed remediation, or baseboard removal. Your team's actions have worsened my documented medical conditions and further contaminated personal property belonging to me, my children, and our service animals.

I do not consent to any further entry for unlicensed remediation or inspection. Any such attempt will be documented and added to the complaints already filed with TDLR and HUD.

I continue to request **reasonable accommodation** under the ADA and Fair Housing Act based on documented disability and medical necessity. A licensed environmental professional has confirmed my unit is **unsafe to occupy**, and my treating providers support immediate

removal from the exposure environment. I have proposed a 14-day temporary relocation to The Nobleman Hotel (availability confirmed), with boarding for my service animals at Doggie Digs next door.

Despite clear evidence of health risk and legal obligation, you have declined to facilitate temporary relocation. The denial of this medically necessary request creates clear exposure under the ADA, FHA, and *Texas Health & Safety Code*.

I request the following by **July 1, 2025 at 4:00 PM Central Standard Time**:

1. Written confirmation that **no unlicensed remediation** will be attempted;
2. Approval of the requested **reasonable accommodation** or a legally compliant alternative;
3. The **name and contact information** of Weinstein Properties' **insurance carrier** for this matter;
4. Contact details for **Weinstein Properties' legal counsel**.

I have acted in good faith and remain open to lawful, cooperative resolution. However, I will continue to pursue all available remedies under state and federal law if necessary.

I would like to know how you intend to offer this—especially if there are no comparable units available. Will you be assisting with relocation logistics? I would like to consider all options, but in the meantime, I stand firm in my position that immediate relocation is medically necessary and legally protected.

I reject your characterization that the unit is safe to occupy. This conclusion directly contradicts the licensed mold assessor's written findings, my documented medical conditions, and applicable state and federal law.

Sincerely,
Katie Copeland
(817) 789-8498
QuinnAndPoppy@gmail.com

From: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>
Date: Monday, June 30, 2025 at 5:42 PM
To: Copeland, Katie <K.M.COPELAND@tcu.edu>
Subject: RE: ADA/FHA Accommodation Request and Notice of Urgent Health Risk – Unit #2145

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie –

I want to start by emphasizing that your health and safety are always our top priority. We take this matter very seriously, and I want to personally assure you that our team is trained to follow all EPA guidelines when performing repairs of this nature. The work we're prepared to carry out is aligned with these standards to ensure everything is handled safely and effectively.

I want to confirm that there is no active leak detected in your home, and all necessary repairs have already been completed. Our team has conducted a thorough assessment, and moisture readings confirm that the area is dry. With no signs of water present, there is no risk of continued mold growth at this time.

City's Codes and Compliance department recently stopped by and informed us that they had visited your home. While we have not yet received an official report, they have requested that the necessary repairs be completed timely. With that in mind, we would like to schedule the repair work for tomorrow to resolve this quickly and minimize any disruption to your routine. This includes, but is not limited to, the replacement of baseboards and effected areas of sheetrock. The work is limited in scope, non-invasive, and can be completed within a day with minimal to no disruption to your daily routine. However, if you would prefer for us to complete the work while you are away from the home for your own peace of mind, we are more than happy to coordinate a time that works better for you.

As mentioned, the scope of the work is limited, non-invasive, and will be completed within a day. Based on our assessment, there is no need for you to vacate the home or arrange for hotel accommodations. At this time, we are not able to accommodate requests for relocation or hotel reimbursement. However, if you feel that remaining in the home during this process is not comfortable for you, we completely understand and want to support you. We're happy to offer the option to transfer to another unit or to end your lease early without penalty.

Since you reported this issue, it is important that we demonstrate our responsiveness and complete the necessary repairs.

Please feel free to reach out with any questions or concerns!

Thank you,

<image001.jpg>

Kodi Walker | Property Manager

The Bowery at Southside Apartments

220 East Broadway Ave. | Fort Worth, TX 76104

Call or Text **833.887.1948**

[WEBSITE](#) | [RESIDENT SERVICES](#)

From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Monday, June 30, 2025 2:09 PM

To: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

Cc: Lile Benaicha <lbenacha@weinsteinproperties.com>; wp@weinsteinproperties.com

Subject: ADA/FHA Accommodation Request and Notice of Urgent Health Risk – Unit #2145

Importance: High

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments.

If you suspect that this is a phishing email, report this to IT by entering a computer help ticket.

Dear Ms. Walker,

This message constitutes a formal request for reasonable accommodation under the Americans with Disabilities Act (ADA), the Fair Housing Act, and related Texas laws.

I understand from Fort Worth Code Compliance that you claim I am not cooperating with remediation. That statement is demonstrably false. I have repeatedly offered access and expressed willingness to allow remediation, as documented in our ongoing correspondence. My sole concern has been ensuring the work is conducted **legally, safely, and by licensed professionals**, as required under Texas law.

As you are aware, I have multiple serious health conditions—including immunological, neurological, and vascular disabilities—that substantially impair major life activities and render me particularly vulnerable to environmental triggers such as mold toxins. These are documented by my treating physicians and home health providers.

Despite repeated notice—including my March 5 email—you and your team assured me the issue had been addressed. However, a licensed mold assessor has now confirmed the presence of **Stachybotrys**, **Chaetomium**, and **extensive moisture damage**, concluding that my unit is **“unfit for human occupancy.”** My symptoms—vision loss, chronic inflammation, nosebleeds, respiratory issues, cognitive dysfunction, severe fatigue, and burning eyes—have worsened significantly since your staff began removing baseboards and “inspecting” the unit without containment or proper licensure.

(See Texas Occupations Code Sec. 1958.101(a): A person may not engage in (1) mold assessment or (2) mold remediation unless licensed to do so.)

I am also attaching the **State Farm denial letter**, which confirms that **displacement costs are not covered**, contrary to your suggestion that I consult my renter’s insurance.

 Reasonable Accommodation Request:

Under federal and state disability laws, I am requesting:

1. **Temporary relocation for at least 14 days** to The Nobleman Hotel (availability confirmed)
2. **Boarding for my two service animals** at Doggie Diggs next door during this time (\$85/night)

3. **Licensed mold remediation** in compliance with Texas Occupations Code Sec. 1958.101

This temporary relocation is a **reasonable accommodation directly tied to my disability**, and is **medically necessary** based on both physician input and the professional mold report. It would also allow your team full access for remediation without exposing me to further medical harm.

I am open to other creative solutions—hotel, extended stay, or temporary alternative unit—but I **cannot safely remain** in an environment now confirmed to be hazardous to my health.

⚠ **Please confirm by 6:00 PM today that:**

1. This accommodation request is approved
2. No further demolition or unlicensed work will occur
3. Arrangements for The Nobleman and Doggie Diggs are being made immediately

I remain willing to fully cooperate with remediation—**so long as it is legal, licensed, and does not further endanger my health**. I hope this matter can be resolved cooperatively, without need for additional regulatory enforcement or litigation.

Sincerely,
Kathryn Copeland
405 Crawford Street, Apt. 2145
Fort Worth, TX 76104
(817) 789-8498

Attachments:

- BioTex Mold Report (6/18/25)
- State Farm Denial Letter
- March 5 Mold Notice Email
- Texas Occupations Code Sec. 1958

<image005.jpg>

From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Date: Friday, June 27, 2025 at 5:29 PM

To: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>

Subject: Re: URGENT HEALTH & SAFETY ISSUE – Formal Notice & Request for Accommodations – The Bowery at Southside Unit #2145

Ms. Walker,

Thank you for your response regarding the mold in my apartment. I'm writing to clarify several critical concerns before any remediation begins.

First, I must highlight that your assessment directly contradicts the licensed professional mold assessor's findings (Kyle Reist, License #MAC1742). His report explicitly states that my unit is "unfit for human occupancy" and that "the scope and magnitude of the mold growth and affected areas exceeds 25 contiguous square feet." Under Texas law, this requires both a written Mold Protocol by a licensed Mold Assessment Consultant and remediation by a licensed Mold Remediation Company.

The report specifically warns: "Maintenance Personnel/General Contractors/Sub-Contractors, who are not licensed through the Texas Department of Licensing and Registration for Mold Remediation, should NOT ATTEMPT to perform exploratory cuts, cover-up, repair work or remediate the areas cited within the 'Visual Inspection' area of this report. Such action could result in further contamination of the structure and any surrounding properties, further exposure to occupants..."

Given these significant contradictions, I request the following information before any work begins:

1. The name, license number, and qualifications of the team members who will be performing the remediation
2. A written remediation protocol explaining how your "in-house" approach complies with Texas Department of Licensing and Regulation requirements for spaces exceeding 25 contiguous square feet
3. Details on what containment measures will be used to prevent further contamination during remediation (negative air pressure, HEPA filtration, etc.)
4. Contact information for your property insurance carrier, as I need to understand all parties involved in resolving this health emergency
5. Written confirmation that Weinstein Properties assumes full liability for any adverse health consequences resulting from remaining in a property professionally deemed "unfit for human occupancy" or from improper remediation methods

Regarding my request for temporary relocation, I have confirmed with State Farm that mold/fungi is specifically excluded from my

renter's insurance coverage. As such, this responsibility falls to the property management. My documented medical conditions (which I am prepared to provide) make me particularly vulnerable to mold exposure, qualifying me for reasonable accommodation under the ADA and Fair Housing Act.

I want to emphasize that my primary concern is securing safe housing while proper remediation occurs. I have not yet reported this situation to the Texas Department of Licensing and Regulation or Fort Worth Code Enforcement, as I hoped we could resolve this cooperatively. However, I cannot consent to improper remediation that may worsen my health condition or create additional liability.

I look forward to your prompt response addressing these concerns so we can move forward appropriately.

Sincerely,
Katie Copeland

Warmly,
Katie Copeland
817-789-8498

<image005.jpg>

From: The Bowery - Kodi Walker <kowalker@weinsteinproperties.com>
Date: Friday, June 27, 2025 at 3:42 PM
To: Copeland, Katie <K.M.COPELAND@tcu.edu>
Subject: RE: URGENT HEALTH & SAFETY ISSUE – Formal Notice & Request for Accommodations – The Bowery at Southside Unit #2145

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie,

Thank you for bringing your concerns to our attention regarding the presence of mold in your home. We understand the seriousness of your concerns and want to reassure you that we are taking prompt and appropriate action to address the issue.

As you are aware myself and my supervisor have assessed the area and confirmed that there is no active leak and no moisture present in the walls. This project is isolated and manageable.

Based on this assessment, we will need to conduct removal of the affected areas immediately. The areas included will be inside the AC closet, outside of the AC closet, behind the door of the guest bedroom, and the left side of the front door. The scope of work will be non-invasive, and no drying equipment such as fans is required. All remediation will be handled in-house by our qualified team.

Please note that your home is safe to occupy during this process, and relocation is not necessary. If you prefer not to remain in the home during the work, you are welcome to consult with your renter's insurance provider regarding temporary accommodation options.

Thank you once again for allowing us access to your home. This project is important to us, and we're committed to resolving the issue as quickly as possible with minimal disruption to you.

We're ready to begin removing any affected areas today, with the goal of completing the necessary repairs by Monday. To keep things moving smoothly, we'll need your continued cooperation and access to the area.

Please let us know if you have any questions or concerns. We appreciate your support and look forward to getting everything resolved promptly.

Thank you,

<image006.jpg>

Kodi Walker | Property Manager

The Bowery at Southside Apartments
220 East Broadway Ave. | Fort Worth, TX 76104
Call or Text **833.887.1948**
[WEBSITE](#) | [RESIDENT SERVICES](#)

From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Friday, June 27, 2025 9:58 AM

To: The Bowery at Southside <thebowery.reply.weinstein@aptleasing.info>; The Bowery <theboweryoffice@weinsteinproperties.com>; wp@weinsteinproperties.com; aweberstein@weinsteinproperties.com

Subject: URGENT HEALTH & SAFETY ISSUE – Formal Notice & Request for Accommodations – The Bowery at Southside Unit #2145

Importance: High

Caution: This is an EXTERNAL EMAIL - Be cautious of clicking links and opening attachments.

If you suspect that this is a phishing email, report this to IT by entering a computer help ticket.

To whom it may concern,

Please find attached a formal demand letter regarding the confirmed presence of toxic mold in my apartment (#2145 at The Bowery at Southside) and Weinstein Properties' failure to adequately respond to multiple notices of this health hazard. A licensed environmental consultant has now declared the unit "unfit for human occupancy."

This matter is time-sensitive due to both my medical condition and the current shortage of nearby lodging, as noted in the attached news

article. I am asking for your immediate help with relocation to avoid further medical harm.

Thank you for your prompt attention to this serious issue.

Warmly,
Katie Copeland
817-789-8498

8/6/2025

Dear Valued Resident,

You are receiving the attached Notice to Vacate for Nonpayment of Rent because our records show that you have not yet paid your balance in full, including the current month.

While we understand that this may be a simple oversight, you must pay your balance in full immediately to avoid having to move out by the date indicated on the attached notice.

To pay the total amount due, including any additional late fees, court costs or attorney's fees that accrue, visit the Leasing Office to drop off a cashier's check or money order (in person or via the drop box) or you can make a debit/credit card payment by visiting bowerysouthside.com and logging into your online account. *Note: There is a service fee for debit/credit card payments. Unfortunately, we cannot accept personal checks for past due amounts.*

We appreciate your prompt attention to this matter and please do not hesitate to contact us with any questions at (833) 887-1948.

Sincerely,



The Bowery at Southside

This communication is an attempt to collect a debt. Any information obtained will be used for that purpose.

Please consider registering for Auto-Pay once your account is current.

Auto-Pay is a FREE service that automatically debits your bank account each month to pay your total balance. When enrolled into Auto-Pay, not only do you not have to remember to make a payment each month but you're also automatically entered into a drawing each month for a chance to win \$100 off your rent. *To sign up, login to your Online Resident Services account and visit the Auto-Pay screen.*

Note: You can also use debit/credit card for AutoPay but there is a service fee, using your bank account is FREE.

**NOTICE TO VACATE FOR
NON-PAYMENT OF RENT, UTILITIES OR OTHER SUMS**

8/6/2025

Kathryn Copeland and all other occupants
405 Crawford St Apt# 2145
Fort Worth, TX 76104

RE: Notice to vacate for non-payment of rent, utilities or other sums, TAA Lease Contract dated 05/26/2025 between the residents named above and WMCi Dallas X LLC t/a The Bowery at Southside (owner).

Dear Resident(s):

Because you have not paid the following:

Water - 1140.0 gallons	4.17
Read 05/22 137590.0 - 06/22 138730.0	
# of Days = 31 (Rate is \$3.66 per 1,000 gallons)	
Wastewater - 1140.0 gallons	6.38
Read 05/22 137590.0 - 06/22 138730.0	
# of Days = 31 (Rate is \$5.60 per 1,000 gallons)	
Water Base Charge 05/22 - 06/22	1.63
Wastewater Base Charge 05/22 - 06/22	0.87
Service Fee 05/22 - 06/22	1.17
Base Rent (08/2025)	2442.00
Storm Water (08/2025)	1.93
Storage Room (08/2025)	25.00
Valet Trash (08/2025)	30.00
Pest Control Fee (08/2025)	5.00
Res Protect Waiver Only (08/2025)	12.00
Late Fee, 10% of \$2442.00	244.20

Your rights of occupancy and possession are hereby terminated under the provisions of your lease. You are still liable for rent and other charges you may owe under the TAA Lease Contract. Details of unpaid sums are above.

Demand for possession is hereby made. You are hereby given notice to vacate the dwelling on or before 11:59p.m., 09/08/2025. Your failure to move out then will result in appropriate legal action by us before the Justice of the Peace. Delay or postponement of such action does not waive our rights. This notice to vacate is unconditional.

Because of the global COVID-19 pandemic, you may be eligible for temporary protection from eviction under Federal Law. Learn the steps you should take now: visit www.cfpb.gov/eviction or call a housing counselor at 800-569-4287.

If you wish to discuss this notice of you vacating the dwelling, please contact us.

8/6/2025



Date notice was given

Signature of owner's representative

Kodi Walker

Printed Name

(833) 887-1948

Phone Number

thebowery@weinsteinproperties.com

Email Address

Proof of Delivery of Notice to Vacate to Resident

On 8/6/2025, I served the NOTICE described herein to the following Resident(s):

Kathryn Copeland

☒ Notice to vacate – Non-Payment of Rent, Utilities or Other Sums

☒ FIRST CLASS MAIL; CERTIFIED MAIL, RETURN RECEIPT REQUESTED; OR REGISTERED MAIL

8/6/2025

A handwritten signature in dark ink, appearing to read "K Walker", written over a horizontal line.

Date notice was given

Signature of owner's representative

Kodi Walker

Printed Name

Subject: Re: Copeland/Weinstein

Date: Monday, August 25, 2025 at 10:59:27 AM Central Daylight Time

From: Glynis Zavarelli

To: Copeland, Katie

CC: Michelle Sortor

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Ms. Copeland-

My client has approved your stay through 9/8 at the reduced rate you identified below. As before, my client has only agreed to pay for the room- one room; my client has not agreed to pay for incidentals and you are not authorized to use the credit card which is being used to pay for the room for any incidental/additional charge or item.

The per diem “standards” you have referenced are inapplicable unless State Farm is providing you coverage for ALE in your renter policy- and if so- please communicate with State Farm as to that.

All other comments, statements or matters in your below email will be addressed through separate correspondence.

Thank you-
Glynis Zavarelli
Sent from I phone

On Aug 25, 2025, at 12:13 AM, Copeland, Katie <K.M.COPELAND@tcu.edu> wrote:

Ms. Zavarelli,

I negotiated a long-term stay rate with Bowie House that they can honor at **\$373/night through September 10, 2025**. This only works if your client authorizes it immediately so the reservation remains intact and I am not forced into another destabilizing move.

Since Friday's disruption I have had a constant migraine with vision impairment, a displaced rib, neck/shoulder joint issues, and exhaustion. With my conditions, each move takes days to recover from. I cannot withstand another forced relocation.

By GSA ALE standards, I should have been provided **two rooms plus \$240/day in per diem**. From June 27–August 25 that is **\$14,400 in per diem alone, none of which has been provided**. Two rooms at \$181/night equals **\$362/night**, meaning the \$373 rate I secured is essentially baseline. I have minimized costs in good faith, yet my basic entitlements have not been met.

Please confirm that your client will authorize the Bowie House stay through September 10 at the negotiated rate of \$373/night. This provides stability while I work toward permanent relocation, which is my intention while we focus on discussions regarding how best to move forward.

The current remediation protocol is inadequate, as site conditions have changed substantially since June 18—the last visit to the site, necessitating new assessment, testing, and protocols. Had my earlier proposal for professional packing/storage been followed, my property might not be contaminated, and my health would be less compromised.

I'm committed to resolving this cooperatively but will pursue all necessary legal remedies if my entitlements are not met. Please advise on the next steps.

Sincerely,

Katie Copeland
817-789-8498

From: Glynis Zavarelli <gzavarelli@wandzlaw.com>

Date: Friday, August 22, 2025 at 7:16 PM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>, john@jadouglaslaw.com
<john@jadouglaslaw.com>

Cc: Michelle Sortor <msortor@wandzlaw.com>

Subject: Copeland/Weinstein

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Ms. Copeland and Mr. Douglas:

As Ms. Copeland is aware, my client has agreed to pay for Ms. Copeland's stay tonight through Sunday night (August 22-24, checking out on Monday August 25) at The Bowie House (Mr. Douglas- this was the one hotel Ms. Copeland identified earlier this evening, while on the phone with me). The price point for this hotel is quite a bit higher than that of the Nobleman (which was charging less than \$300 per night).

Ms. Copeland you will need to locate different lodging for Monday forward – and at a price point of \$300.00 (or less); as such, as I had indicated early this morning (my 6 am email) – you will need to obtain alternative option(s) to present to me for my client to approve payment (as to the nightly room rate, not incidentals). **I will look to receive this information by 9:00 am on Monday so that there is time to get the arrangements made before check out on Monday.** I will not be working this weekend but if you leave me an email over the weekend – I will check that as soon as I return to the office (and this will be before 8:00 am on Monday) and contact my client right away to seek/obtain the necessary approval.

My client has made clear to me that it will not continue to pay for The Bowie House past the Sunday night stay – therefore, it is imperative that other lodging is located, for a stay that starts Monday night (and that the process I have identified is followed -to include as to the time by which this needs to be accomplished). I will not be available at all after the Noon hour on Monday – and I am out all day Tuesday.

Mr. Douglas please provide whatever assistance you are available and able to provide to Ms. Copeland, with this process – to the extent necessary.

Thank you -

Glynis L. Zavarelli
Wentz & Zavarelli, LLP
3120 Sabre Drive, Suite 170
Southlake, Texas 76092
(469) 665-9100
Cell: (817) 832-3689

Automated Certificate of eService

This automated certificate of service was created by the eFiling system. The filer served this document via email generated by the eFiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Envelope ID: 108587210

Filing Code Description: Motion (No Fee)

Filing Description: Motion for Statutorily Required Accommodations Under TFHA

Status as of 12/2/2025 9:01 AM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
Glynis L.Zavarelli		gzavarelli@wandzlaw.com	12/1/2025 7:46:14 PM	SENT
Michelle Sortor		msortor@wandzlaw.com	12/1/2025 7:46:14 PM	SENT
Kathryn Copeland		katie@copelandlawtexas.com	12/1/2025 7:46:14 PM	SENT
Courtney Cotten		ccotten@wandzlaw.com	12/1/2025 7:46:14 PM	SENT
Rebecca Young		ryoung@wandzlaw.com	12/1/2025 7:46:14 PM	SENT
Krystina Hickey		khickey@wandzlaw.com	12/1/2025 7:46:14 PM	SENT
Kathryn Copeland		k.m.copeland@tcu.edu	12/1/2025 7:46:14 PM	SENT
Aayush Dhurka		adhurka@wandzlaw.com	12/1/2025 7:46:14 PM	SENT